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Pastor Bonus (June 28, 1988)

APOSTOLIC CONSTITUTION PASTOR BONUS

JOHN PAUL, BISHOP SERVANT OF THE SERVANTS OF GOD FOR AN EVERLASTING MEMORIAL

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TRANSLATION NOTE

Introduction

1. The Good Shepherd, the Lord Christ Jesus (cf. Jn 10: 11, 14), conferred on the bishops, the successors of the Apostles, and in a singular way on the bishop of Rome, the successor of Peter, the mission of making disciples in all nations and of preaching the Gospel to every creature. And so the Church was established, the people of God, and the task of its shepherds or pastors was indeed to be that service "which is called very expressively in Sacred Scripture a diaconia or ministry."

The main thrust of this service or diaconia is for more and more communion or fellowship to be generated in the whole body of the Church, and for this communion to thrive and produce good results. As the insight of the Second Vatican Council has taught us, we come, with the gentle prompting of the Holy Spirit, to see the meaning of the mystery of the Church in the manifold patterns within this communion: for the Spirit will guide "the Church in the way of all truth (cf. Jn 16:13) and [unify] her in communion and in the work of ministry, he bestows upon her varied hierarchic and charismatic gifts [...]. Constantly he renews her and leads her to perfect union with her Spouse." Wherefore, as the same Council affirms, "fully incorporated into the Church are those who, possessing the Spirit of Christ, accept all the means of salvation given to the Church together with her entire organization, and who - by the bonds constituted by the profession of faith, the sacraments, ecclesiastical government, and communion - are joined in the visible structure of the Church of Christ, who rules her through the Supreme Pontiff and the bishops."

Not only has this notion of communion been explained in the documents of the Second Vatican Council in general, especially in the Dogmatic Constitution on the Church, but it also received attention from the Fathers attending the 1985 and 1987 General Assemblies of the Synod of Bishops. Into this definition of the Church comes a convergence of the actual mystery of the Church, the orders or constituent elements of the messianic people of God, and the hierarchical constitution of the Church itself. To describe it all in one broad expression, we take the words of the Dogmatic Constitution Lumen gentium just mentioned and say that "the Church, in Christ, is in the nature of sacrament - a sign and instrument, that is, of communion with God and of unity among the whole of humankind." That is why this sacred communion thrives in the whole Church of Christ, as our predecessor Paul VI so well described it, "which lives and acts in the various Christian communities, namely, in the particular Churches dispersed throughout the whole world."

2. When one thinks about this communion, which is the force, as it were, that glues the whole Church together, then the

hierarchical constitution of the Church unfolds and comes into effect. It was endowed by the Lord himself with a primatial and collegial nature at the same time when he constituted the apostles "in the form of a college or permanent assembly, at the head of which he placed Peter, chosen from amongst them." Here we are looking at that special concept whereby the pastors of the Church share in the threefold task of Christ - to teach, to sanctify, and to govern: and just as the apostles acted with Peter, so do the bishops together with the bishop of Rome. To use the words of the Second Vatican Council once more: "In that way, then, with priests and deacons as helpers, the bishops received the charge of the community, presiding in God's stead over the flock of which they are the shepherds in that they are teachers of doctrine, ministers of sacred worship and holders of office in government. Moreover, just as the office which the Lord confided to Peter alone, as first of the apostles, destined to be transmitted to his successors, is a permanent one, so also endures the office, which the apostles received, of shepherding the Church, a charge destined to be exercised without interruption by the sacred order of bishops." And so it comes about that "this college" - the college of bishops joined together with the bishop of Rome - "in so far as it is composed of many members, is the expression of the multifariousness and universality of the people of God; and of the unity of the flock of Christ, in so far as it is assembled under one head."

The power and authority of the bishops bears the mark of diaconia or stewardship , fitting the example of Jesus Christ himself who "came not to be served, but to serve and to give his life as a ransom for many" (Mk 10:45). Therefore the power that is found in the Church is to be understood as the power of being a servant and is to be exercised in that way; before anything else it is the authority of a shepherd.

This applies to each and every bishop in his own particular Church; but all the more does it apply to the bishop of Rome, whose Petrine ministry works for the good and benefit of the universal Church. The Roman Church has charge over the "whole body of charity" and so it is the servant of love. It is largely from this principle that those great words of old have come - "The servant of the servants of God" -, by which Peter's successor is known and defined.

That is why the Roman Pontiff has also taken pains to deal carefully with the business of particular Churches, referred to him by the bishops or in some other way come to his attention, in order to encourage his brothers in the faith (cf. Lk 22:32), by means of this wider experience and by virtue of his office as Vicar of Christ and pastor of the whole Church. For he was convinced that the reciprocal communion between the bishop of Rome and the bishops throughout the world, bonded in unity, charity, and peace, brought the greatest advantage in promoting and defending the unity of faith and discipline in the whole Church.

3. In the light of the foregoing, it is understood that the diaconia peculiar to Peter and his successors is necessarily related to the diaconia of the other apostles and their successors, whose sole purpose is to build up the Church in this world.

From ancient times, this essential and interdependent relation of the Petrine ministry with the task and ministry of the other apostles has demanded something of a visible sign, not just by way of a symbol but something existing in reality, and it must still demand it. Deeply conscious of the burden of apostolic toil, our predecessors have given clear and thoughtful expression to this need, as we see, for example, in the words of Innocent III who wrote to the bishops and prelates of France in 1198 when he was sending a legate to them: "Although the Lord has given us the fullness of power in the Church, a power that makes us owe something to all Christians, still we cannot stretch the limits of human nature. Since we cannot deal personally with every single concern - the law of human condition does not suffer it - we are sometimes constrained to use certain brothers of ours as extensions of our own body, to take care of things we would rather deal with in person if the convenience of the Church allowed it."

This gives some insight into the nature of that institution that Peter's successor has used in exercising his mission for the good of the universal Church, and some understanding of the procedures by which the institution itself has had to carry out its task: we mean the Roman Curia, which has worked in the service of the Petrine ministry from ancient times.

For the Roman Curia came into existence for this purpose, that the fruitful communion we mentioned might be strengthened and make ever more bountiful progress, rendering more effective the task of pastor of the Church which Christ entrusted to Peter and his successors, a task that has been growing and expanding from day to day. Our predecessor Sixtus V, in the Apostolic Constitution Immensa æterni Dei , admitted as much: "The Roman Pontiff, whom

Christ the Lord constituted as visible head of his body, the Church, and appointed for the care of all the Churches, calls and rallies unto himself many collaborators for this immense responsibility [...]; so that he, the holder of the key of all this power, may share the huge mass of business and responsibilities among them - i.e., the cardinals - and the other authorities of the Roman Curia, and by God's helping grace avoid breaking under the strain."

4. Right from the most ancient times, as a matter of fact, if we may sketch out a few lines of history, the Roman Pontiffs, in the course of their service directed to the welfare of the whole Church, have engaged the help of institutions or individual men selected from that Church of Rome which our predecessor Gregory the Great has called the Church of the Blessed Apostle Peter .

At first they used the services of priests or deacons belonging to the Church of Rome to function as legates, to be sent on various missions, or to represent the bishops of Rome at ecumenical councils.

When matters of particular importance were to be dealt with, the bishops of Rome called on the help of Roman synods or councils to which they summoned bishops working in the ecclesiastical province of Rome. These councils not only dealt with questions pertaining to doctrine and the magisterium, but also functioned like tribunals, judging cases of bishops referred to the Roman Pontiff.

From the time when the cardinals began to take on a special importance in the Roman Church, especially in the election of the Pope - a function reserved to them from 1059 -, the Roman Pontiffs made more and more use of their services, with the result that the Roman synods and councils gradually lost their importance until they ceased entirely.

So it came about that, especially after the thirteenth century, the Supreme Pontiff carried out all the business of the Church together with the cardinals gathered in consistory. Thus temporary instruments, the councils or synods of Rome, were replaced by another instrument, a permanent one, always available to the Pope.

It was our predecessor Sixtus V who gave the Roman Curia its formal organization through the above-quoted Apostolic Constitution Immensa æterni Dei , on 22 January 1588, the 1587 th year from the Incarnation of Our Lord Jesus Christ. He set up fifteen dicasteries, so that the single College of Cardinals would be replaced by several colleges consisting of certain cardinals whose authority would be confined to a clearly defined field and to a definite subject matter. In this way, the Supreme Pontiffs could enjoy maximum benefit from these collegial counsels. Consequently, the consistory's own original role and importance were greatly diminished.

As the centuries passed and historical outlooks and world conditions were transformed, certain changes and refinements were brought in, especially when the commissions of cardinals were set up in the nineteenth century to give the Pope assistance beyond that of the other dicasteries of the Roman Curia. Then on 29 June 1908, our predecessor Saint Pius X promulgated the Apostolic Constitution Sapienti consilio , in which, referring to the plan of collecting the laws of the Church into a Code of Canon Law , he wrote: "It has seemed most fitting to start from the Roman Curia so that, structured in a suitable way that everyone can understand, the Curia may more easily and effectively lend its help to the Roman Pontiff and the Church." Here are the principal effects of that reform: the Sacred Roman Rota, which had ceased to function in 1870, was reestablished to deal with judicial cases, while the Congregations lost their judicial competence and became purely administrative organs. The principle was also established whereby the Congregations would enjoy their own rights, deferring to nobody else, so that each individual matter was to be dealt with by its own dicastery, and not by several at the same time.

This reform by Pius X, later confirmed and completed in the Code of Canon Law promulgated in 1917 by our predecessor Benedict XV, remained practically unchanged until 1967, not long after the Second Vatican Council in which the Church delved more deeply into the mystery of its own being and gained a more lively vision of its mission.

5. This growing self-awareness of the Church was bound of itself, and in keeping with our times, to produce a certain updating of the Roman Curia. While the Fathers of the Council acknowledged that the Curia had hitherto rendered outstanding assistance to the Roman Pontiff and the pastors of the Church, at the same time they expressed the desire that the dicasteries of the Curia should undergo a reorganization better suited to the needs of the times and of different regions and rites. Our predecessor Paul VI quickly complied with the wishes of the Council and put into effect the

reorganization of the Curia with the promulgation of the Apostolic Constitution Regimini Ecclesiæ universæ on 15 August 1967.

Through this Constitution, Paul VI laid down more detailed specifications for the structure, competence, and procedures of the already existing dicasteries, and established new ones to support specific pastoral initiatives, while the other dicasteries would carry on their work of jurisdiction or governance. The composition of the Curia came to reflect more clearly the multiform image of the universal Church. Among other things, the Curia coopted diocesan bishops as members and at the same time saw to the internal coordination of the dicasteries by periodic meetings of the cardinals who presided over them, to pool ideas and consider common problems. To provide better protection of the principal rights of the faithful, the Second Section was created in the Tribunal of the Apostolic Signatura.

Fully aware that the reform of such ancient institutions needed more careful study, Paul VI ordered the new system to be reexamined more deeply five years after the promulgation of the Constitution, and for a new look to be taken at the question whether it really conformed to the demands of the Second Vatican Council and answered the needs of the Christian people and civil society. As far as necessary, it should be recast in an even more suitable form. To carry out this task, a special group of prelates was set up, chaired by a cardinal, and this Commission worked hard at the project, up to the death of that Pontiff.

6. When by the inscrutable design of Providence we were called to the task of being the shepherd of the universal Church, from the very beginning of our pontificate we took steps not only to seek advice from the dicasteries on this grave matter, but also to ask the opinion of the whole College of Cardinals. These cardinals, twice gathered in general consistory, addressed the question and gave their advice on the ways and means to be followed in the organization of the Roman Curia. It was necessary to consult the cardinals first in this important matter, for they are joined to the ministry of the bishop of Rome by a close and most special bond and they "are also available to [him], either acting collegially, when they are summoned together to deal with questions of major importance, or acting individually, that is, in the offices which they hold in assisting [him] especially in the daily care of the universal Church."

A very broad consultation, as we mentioned above, was again carried out, as was only fitting, among the dicasteries of the Roman Curia. The result of this general consultation was the "Draft of a special law concerning the Roman Curia," worked out over close to two years by a commission of prelates under the chairmanship of a cardinal. This draft was examined by the individual cardinals, the patriarchs of the Oriental Churches, the conferences of bishops through their presidents, the dicasteries of the Roman Curia, and was discussed at the plenary meeting of cardinals in 1985. As to the conferences of bishops, it was essential that we be thoroughly briefed about their true general feeling on the needs of the particular Churches and what they wanted and expected in this regard from the Roman Curia. In gaining a clear awareness of all this, we had strong and most timely help from the 1985 extraordinary Synod of Bishops, as we have mentioned above.

Then, taking into account the observations and suggestions that had been gathered in the course of these extensive consultations, and bearing in mind the considered judgement of certain private individuals, a commission of cardinals, which had been set up for this express purpose, prepared a particular law for the Roman Curia in harmony with the new Code of Canon Law .

It is this particular law that we wish to promulgate by means of this Apostolic Constitution, at the end of the fourth centenary of the afore-mentioned Apostolic Constitution Immensa æterni Dei of Sixtus V, eighty years after the Apostolic Constitution Sapienti consilio of Saint Pius X, and scarcely twenty years after the coming into force of the Apostolic Constitution of Paul VI Regimini Ecclesiæ universæ , with which our own is closely linked, since both in some way derive from the Second Vatican Council and both originate from the same inspiration and intent.

7. In harmony with the Second Vatican Council, this inspiration and intent establish and express the steadfast activity of the renewed Curia, as in these words of the Council: "In exercising his supreme, full and immediate authority over the universal Church, the Roman Pontiff employs the various departments of the Roman Curia, which act in his name and by his authority for the good of the Churches and in service of the sacred pastors."

Consequently, it is evident that the function of the Roman Curia, though not belonging to the essential constitution of the

Church willed by God, has nevertheless a truly ecclesial character because it draws its existence and competence from the pastor of the universal Church. For the Curia exists and operates only insofar as it has a relation to the Petrine ministry and is based on it. But just as the ministry of Peter as the "servant of the servants of God" is exercised in relationship with both the whole Church and the bishops of the entire Church, similarly the Roman Curia, as the servant of Peter's successor, looks only to help the whole Church and its bishops.

This clearly shows that the principal characteristic of each and every dicastery of the Roman Curia is that of being ministerial , as the already-quoted words of the Decree Christus Dominus declare and especially these: "The Roman Pontiff employs the various departments of the

Roman Curia ." These words clearly show the Curia's instrumental nature, described as a kind of agent in the hands of the Pontiff, with the result that it is endowed with no force and no power apart from what it receives from the same Supreme Pastor. Paul VI himself, in 1963, two years before he promulgated the Decree Christus Dominus , defined the Roman Curia "as an instrument of immediate adhesion and perfect obedience," an instrument the Pope uses to fulfill his universal mission. This notion is taken up throughout the Apostolic Constitution Regimini Ecclesiæ universæ .

This instrumental and ministerial characteristic seems indeed to define most appropriately the nature and role of this worthy and venerable institution. Its nature and role consist entirely in that the more exactly and loyally the institution strives to dedicate itself to the will of the Supreme Pontiff, the more valuable and effective is the help it gives him.

8. Beyond this ministerial character, the Second Vatican Council further highlighted what we may call the vicarious character of the Roman Curia, because, as we have already said, it does not operate by its own right or on its own initiative. It receives its power from the Roman Pontiff and exercises it within its own essential and innate dependence on the Pontiff. It is of the nature of this power that it always joins its own action to the will of the one from whom the power springs. It must display a faithful and harmonious interpretation of his will and manifest, as it were, an identity with that will, for the good of the Churches and service to the bishops. From this character the Roman Curia draws its energy and strength, and in it too finds the boundaries of its duties and its code of behaviour.

The fullness of this power resides in the head, in the very person of the Vicar of Christ, who imparts it to the dicasteries of the Curia according to the competence and scope of each one. Since, as we said earlier, the Petrine function of the Roman Pontiff by its very nature relates to the office of the college of his brother bishops and aims at building up and making firm and expanding the whole Church as well as each and every particular Church, this same diaconia of the Curia, which he uses in carrying out his own personal office, necessarily relates in the same way to the personal office of the bishops, whether as members of the college of bishops or as pastors of the particular Churches.

For this reason, not only is the Roman Curia far from being a barrier or screen blocking personal communications and dealings between bishops and the Roman Pontiff, or restricting them with conditions, but, on the contrary, it is itself the facilitator for communion and the sharing of concerns, and must be ever more so.

9. By reason of its diaconia connected with the Petrine ministry, one concludes, on the one hand, that the Roman Curia is closely bound to the bishops of the whole world, and, on the other, that those pastors and their Churches are the first and principal beneficiaries of the work of the dicasteries. This is proved even by the composition of the Curia.

For the Roman Curia is composed of nearly all the cardinals who, by definition, belong to the Roman Church, and they closely assist the Supreme Pontiff in governing the universal Church. When important matters are to be dealt with, they are all called together into regular or special consistories. So they come to have a strong awareness of the needs of all of God's people, and they labour for the good of the whole Church.

In addition to this, most of the heads of the individual dicasteries have the character and grace of the episcopate, pertaining to the one College of Bishops, and so are inspired by the same solicitude for the whole Church as are all bishops in hierarchical communion with their head, the bishop of Rome.

Furthermore, as some diocesan bishops are coopted onto the dicasteries as members and are "better able to inform the Supreme Pontiff on the thinking, the hopes and the needs of all the Churches," so the collegial spirit between the

bishops and their head works through the Roman Curia and finds concrete application, and this is extended to the whole Mystical Body which "is a corporate body of Churches."

This collegial spirit is also fostered between the various dicasteries. All the cardinals in charge of dicasteries, or their representatives, when specific questions are to be addressed, meet periodically in order to brief one another on the more important matters and provide mutual assistance in finding solutions, thus providing unity of thought and action in the Roman Curia.

Apart from these bishops, the business of the dicasteries employs a number of collaborators who are of value and service to the Petrine ministry by work that is neither light nor easy and is often obscure.

The Roman Curia calls into its service diocesan priests from all over the world, who by their sharing in the ministerial priesthood are closely united with the bishops, male religious, most of whom are priests, and female religious, all of whom in their various ways lead their lives according to the evangelical counsels, furthering the good of the Church, and bearing special witness for Christ before the world, and lay men and women who by virtue of baptism and confirmation are fulfilling their own apostolic role. By this coalition of many forces, all ranks within the Church join in the ministry of the Supreme Pontiff and more effectively help him by carrying out the pastoral work of the Roman Curia. This kind of service by all ranks in the Church clearly has no equal in civil society and their labour is given with the intent of truly serving and of following and imitating the diaconia of Christ himself.

10. From this comes to light that the ministry of the Roman Curia is strongly imbued with a certain note of collegiality , even if the Curia itself is not to be compared to any kind of college. This is true whether the Curia be considered in itself or in its relations with the bishops of the whole Church, or because of its purposes and the corresponding spirit of charity in which that ministry has to be conducted. This collegiality enables it to work for the college of bishops and equips it with suitable means for doing so. Even more, it expresses the solicitude that the bishops have for the whole Church, inasmuch as bishops share this kind of care and zeal "with Peter and under Peter."

This comes out most strikingly and takes on a symbolic force when, as we have already said above, the bishops are called to collaborate in the individual dicasteries. Moreover, each and every bishop still has the inviolable right and duty to approach the successor of Saint Peter, especially by means of the visits ad limina Apostolorum .

These visits have a special meaning all of their own, in keeping with the ecclesiological and pastoral principles explained above. Indeed, they are first of all an opportunity of the greatest importance, and they constitute, as it were, the centre of the highest ministry committed to the Supreme Pontiff. For then the pastor of the universal Church talks and communicates with the pastors of the particular Churches, who have come to him in order to see Cephas (cf. Gal 1:18), to discuss with him the problems of their dioceses, face to face and in private, and so to share with him the solicitude for all the Churches (cf. 2 Cor 11:28). For these reasons, communion and unity in the innermost life of the Church is fostered to the highest degree through the ad limina visits.

These visits also allow the bishops a frequent and convenient way to contact the appropriate dicasteries of the Roman Curia, pondering and exploring plans concerning doctrine and pastoral action, apostolic initiatives, and any difficulties obstructing their mission to work for the eternal salvation of the people committed to them.

11. Thus since the zealous activity of the Roman Curia, united to the Petrine ministry and based on it, is dedicated to the good both of the whole Church and the particular Churches, the Curia is in the first place being called on to fulfill that ministry of unity which has been entrusted in a singular way to the Roman Pontiff insofar as he has been set up by God's will as the permanent and visible foundation of the Church. Hence unity in the Church is a precious treasure to be preserved, defended, protected, and promoted, to be for ever exalted with the devoted cooperation of all, and most indeed by those who each in their turn are the visible source and foundation of unity in their own particular Churches .

Therefore the cooperation which the Roman Curia brings to the Supreme Pontiff is rooted in this ministry of unity. This unity is in the first place the unity of faith , governed and constituted by the sacred deposit of which Peter's successor is the chief guardian and protector and through which indeed he receives his highest responsibility, that of strengthening his brothers. The unity is likewise the unity of discipline , the general discipline of the Church, which constitutes a system

of norms and patterns of behaviour, gives shapes to the fundamental structure of the Church, safeguards the means of salvation and their correct administration, together with the ordered structure of the people of God.

Church government safeguards this unity and cares for it at all times. So far from suffering harm from the differences of life and behaviour among various persons and cultures, what with the immense variety of gifts poured out by the Holy Spirit, this same unity actually grows richer year by year, so long as there are no isolationist or centripetal attempts and so long as everything is brought together into the higher structure of the one Church. Our predecessor John Paul I brought this principle to mind quite admirably when he addressed the cardinals about the agencies of the Roman Curia: "[They] provide the Vicar of Christ with the concrete means of giving the apostolic service that he owes the entire Church. Consequently, they guarantee an organic articulation of legitimate autonomies, while maintaining an indispensable respect for that unity of discipline and faith for which Christ prayed on the very eve of his passion."

And so it is that the highest ministry of unity in the universal Church has much respect for lawful customs, for the mores of peoples and for that authority which belongs by divine right to the pastors of the particular Churches. Clearly however, whenever serious reasons demand it, the Roman Pontiff cannot fail to intervene in order to protect unity in faith, in charity, or in discipline.

12. Consequently, since the mission of the Roman Curia is ecclesial, it claims the cooperation of the whole Church to which it is directed. For no one in the Church is cut off from others and each one indeed makes up the one and the same body with all others.

This kind of cooperation is carried out through that communion we spoke of at the beginning, namely of life, charity, and truth, for which the messianic people is set up by Christ Our Lord, taken up by Christ as an instrument of redemption, and sent out to the whole world as the light of the world and the salt of the earth. Therefore, just as it is the duty of the Roman Curia to communicate with all the Churches, so the pastors of the particular Churches, governing these Churches "as vicars and legates of Christ,"must take steps to communicate with the Roman Curia, so that, dealing thus with each other in all trust, they and the successor of Peter may come to be bound together ever so strongly.

This mutual communication between the centre of the Church and the periphery does not enlarge the scope of anyone's authority but promotes communion in the highest degree, in the manner of a living body that is constituted and activated precisely by the interplay of all its members. This was well expressed by our predecessor Paul VI: "It is obvious, in fact, that along with the movement toward the centre and heart of the Church, there must be another corresponding movement, spreading from the centre to the periphery and carrying, so to speak, to each and all of the local Churches, to each and all of the pastors and the faithful, the presence and testimony of that treasure of truth and grace of which Christ has made Us the partaker, depository and dispenser."

All of this means that the ministry of salvation offers more effectively to this one and same people of God, a ministry, we repeat, which before anything else demands mutual help between the pastors of the particular Churches and the pastor of the whole Church, so that all may bring their efforts together and strive to fulfill that supreme law which is the salvation of souls.

History shows that when the Roman Pontiffs established the Roman Curia and adapted it to new conditions in the Church and in the world, they intended nothing other than to work all the better for this salvation of souls. With full justification did Paul VI visualise the Roman Curia as another cenacle or upper room of Jerusalem totally dedicated to the Church. We ourselves have proclaimed to all who work there that the only possible code of action is to set the norm for the Church and to deliver eager service to the Church. Indeed, in this new legislation on the Roman Curia it has been our will to insist that the dicasteries should approach all questions "by a pastoral route and with a pastoral sense of judgement, aiming at justice and the good of the Church and above all at the salvation of souls."

13. Now as we are about to promulgate this Apostolic Constitution, laying down the new physionomy of the Roman Curia, we wish to bring together the ideas and intentions that have guided us.

First of all we wanted the image and features of this Curia to respond to the demands of our time, bearing in mind the changes that have been made by us or our predecessor Paul VI after the publication of the Apostolic Constitution

Regimini Ecclesiæ universæ .

Then it was our duty to fulfill and complete that renewal of the laws of the Church which was brought in by the publication of the new Code of Canon Law or which is to be brought into effect by the revision of the Oriental canonical legislation.

Then we had in mind that the traditional dicasteries and organs of the Roman Curia be made more suitable for the purposes they were meant for, that is, their share in governance, jurisdiction, and administration. For this reason, their areas of competence have been distributed more aptly among them and more distinctly delineated.

Then with an eye to what experience has taught in recent years and to the never ending demands of Church society, we reexamined the juridical form and raison d'être of existence of those organs which are rightly called "postconciliar," changing on occasion their shape and organization. We did this in order to make the work of those institutions more and more useful and beneficial, that is, supporting special pastoral activity and research in the Church which, at an ever accelerating pace, are filling pastors with concern and which with the same urgency demand timely and well thought out answers.

Finally, new and more stable measures have been devised to promote mutual cooperation between dicasteries, so that their manner of working may intrinsically bear the stamp of unity.

In a word, our whole steadfast approach has been to make sure that the structure and working methods of the Roman Curia increasingly correspond to the ecclesiology spelled out by the Second Vatican Council, be ever more clearly suitable for achieving the pastoral purposes of its own constitution, and more and more fit to meet the needs of Church and civil society.

It is indeed our conviction that now, at the beginning of the third millennium after the birth of Christ, the zeal of the Roman Curia in no small measure contributes to the Church's fidelity to the mystery of her origin, since the Holy Spirit keeps her ever young by the power of the Gospel.

14. Having given thought to all these matters with the help of expert advisors, sustained by the wise counsel and collegial spirit of the cardinals and bishops, having diligently studied the nature and mission of the Roman Curia, we have commanded that this Apostolic Constitution be drawn up, led by the hope that this venerable institution, so necessary to the government of the Church, may respond to that new pastoral impulse by which all the faithful are moved, laity, priests and particularly bishops, especially now after the Second Vatican Council, to listen ever more deeply and follow what the Spirit is saying to the Churches (cf. Rev 2:7).

Just as all the pastors of the Church, and among them in a special way the bishop of Rome, are keenly aware that they are "Christ's servants, stewards entrusted with the mysteries of God" (1 Cor 4:1) and seek above all to be utterly loyal helpers whom the Eternal Father may easily use to carry out the work of salvation in the world, so also the Roman Curia has this strong desire, in each and every sphere of its important work, to be filled with the same spirit and the same inspiration; the Spirit, we say, of the Son of Man, of Christ the only begotten of the Father, who "has come to save what was lost" (Mt 18:11) and whose single and all-embracing wish is that all men "may have life and have it to the full" (Jn 10:10).

Therefore, with the help of God's grace and of the Most Blessed Virgin Mary, the Mother of the Church, we establish and decree the following norms for the Roman Curia.

I GENERAL NORMS

Notion of Roman Curia

Art. 1 - The Roman Curia is the complex of dicasteries and institutes which help the Roman Pontiff in the exercise of his supreme pastoral office for the good and service of the whole Church and of the particular Churches. It thus strengthens the unity of the faith and the communion of the people of God and promotes the mission proper to the Church in the

world.

Structure of the Dicasteries

Art. 2 - § 1. By the word "dicasteries" are understood the Secretariat of State, Congregations, Tribunals, Councils and Offices, namely the Apostolic Camera, the Administration of the Patrimony of the Apostolic See, and the Prefecture for the Economic Affairs of the Holy See.

§ 2. The dicasteries are juridically equal among themselves.

§ 3. Among the institutes of the Roman Curia are the Prefecture of the Papal Household and the Office for the Liturgical Celebrations of the Supreme Pontiff.

Art. 3 - § 1. Unless they have a different structure in virtue of their specific nature or some special law, the dicasteries are composed of the cardinal prefect or the presiding archbishop, a body of cardinals and of some bishops, assisted by a secretary, consultors, senior administrators, and a suitable number of officials.

§ 2. According to the specific nature of certain dicasteries, clerics and other faithful can be added to the body of cardinals and bishops.

§ 3. Strictly speaking, the members of a congregation are the cardinals and the bishops.

Art. 4. - The prefect or president acts as moderator of the dicastery, directs it and acts in its name.

The secretary, with the help of the undersecretary, assists the prefect or president in managing the business of the dicastery as well as its human resources.

Art. 5 - § 1. The prefect or president, the members of the body mentioned in art. 3, § 1, the secretary, and the other senior administrators, as well as the consultors, are appointed by the Supreme Pontiff for a five-year term.

§ 2. Once they have completed seventy-five years of age, cardinal prefects are asked to submit their resignation to the Roman Pontiff, who, after considering all factors, will make the decision. Other moderators and secretaries cease from office, having completed seventy-five years of age; members, when they have completed eighty years of age; those who are attached to any dicastery by reason of their office cease to be members when their office ceases.

Art. 6 - On the death of the Supreme Pontiff, all moderators and members of the dicasteries cease from their office. The camerlengo of the Roman Church and the major penitentiary are excepted, who expedite ordinary business and refer to the College of Cardinals those things which would have been referred to the Supreme Pontiff.

The secretaries see to the ordinary operations of the dicasteries, taking care of ordinary business only; they need to be confirmed in office by the Supreme Pontiff within three months of his election.

Art. 7 - The members of the body mentioned in art. 3, § 1, are taken from among the cardinals living in Rome or outside the city, to whom are added some bishops, especially diocesan ones, insofar as they have special expertise in the matters being dealt with; also, depending on the nature of the dicastery, some clerics and other Christian faithful, with this proviso that matters requiring the exercise of power of governance be reserved to those in holy orders.

Art. 8 - Consultors also are appointed from among clerics or other Christian faithful outstanding for their knowledge and prudence, taking into consideration, as much as possible, the international character of the Church.

Art. 9 - Officials are taken from among the Christian faithful, clergy or laity, noted for their virtue, prudence, and experience, and for the necessary knowledge attested by suitable academic degrees, and selected as far as possible from the various regions of the world, so that the Curia may express the universal character of the Church. The suitability of the applicants should be evaluated by test or other appropriate means, according to the circumstances.

Particular Churches, moderators of institutes of consecrated life and of societies of apostolic life will not fail to render assistance to the Apostolic See by allowing their Christian faithful or their members to be available for service at the Roman Curia.

Art. 10 - Each dicastery is to have its own archive where incoming documents and copies of documents sent out are kept safe and in good order in a system of "protocol" organized according to modern methods.

Procedure

Art. 11 - § 1. Matters of major importance are reserved to the general meeting, according to the nature of each dicastery.

§ 2. All members must be called in due time to the plenary sessions, held as far as possible once a year, to deal with questions involving general principles, and for other questions which the prefect or president may have deemed to require treatment. For ordinary sessions it is sufficient to convoke members who reside in Rome.

§ 3. The secretary participates in all sessions with the right to vote.

Art. 12 - Consultors and those who are equivalent to them are to make a diligent study of the matter in hand and to present their considered opinion, usually in writing.

So far as opportunity allows and depending on the nature of each dicastery, consultors can be called together to examine questions in a collegial fashion and, as the case may be, present a common position.

For individual cases, others can be called in for consultation who, although not numbered among the consultors, are qualified by their special expertise in the matter to be treated.

Art. 13 - Depending on their own proper field of competence, the dicasteries deal with those matters which, because of their special importance, either by their nature or by law, are reserved to the Apostolic See and those which exceed the competence of individual bishops and their groupings, as well as those matters committed to them by the Supreme Pontiff. The dicasteries study the major problems of the present age, so that the Church's pastoral action may be more effectively promoted and suitably coordinated, with due regard to relations with the particular Churches. The dicasteries promote initiatives for the good of the universal Church. Finally, they review matters that the Christian faithful, exercising their own right, bring to the attention of the Apostolic See.

Art. 14 - The competence of dicasteries is defined on the basis of subject matter, unless otherwise expressly provided for.

Art. 15 - Questions are to be dealt with according to law, be it universal law or the special law of the Roman Curia, and according to the norms of each dicastery, yet with pastoral means and criteria, attentive both to justice and the good of the Church and, especially, to the salvation of souls.

Art. 16 - Apart from the official Latin language, it is acceptable to approach the Roman Curia in any of the languages widely known today.

For the convenience of the dicasteries, a centre is being established for translating documents into other languages.

Art. 17 - General documents prepared by one dicastery will be communicated to other interested dicasteries, so that the text may be improved with any corrections that may be suggested, and, through common consultation, it may even be proceeded in a coordinated manner to their implementation.

Art. 18 - Decisions of major importance are to be submitted for the approval of the Supreme Pontiff, except decisions for which special faculties have been granted to the moderators of the dicasteries as well as the sentences of the Tribunal of the Roman Rota and the Supreme Tribunal of the Apostolic Signatura within the limits of their proper competence.

The dicasteries cannot issue laws or general decrees having the force of law or derogate from the prescriptions of current universal law, unless in individual cases and with the specific approval of the Supreme Pontiff.

It is of the utmost importance that nothing grave and extraordinary be transacted unless the Supreme Pontiff be previously informed by the moderators of the dicasteries.

Art. 19 - § 1. Hierarchical recourses are received by whichever dicastery has competence in that subject matter, without prejudice to art. 21, § 1.

§ 2. Questions, however, which are to be dealt with judicially are sent to the competent tribunals, without prejudice to arts. 52-53.

Art. 20 - Conflicts of competence arising between dicasteries are to be submitted to the Supreme Tribunal of the Apostolic Signatura, unless it pleases the Supreme Pontiff to deal with them otherwise.

Art. 21 - § 1. Matters touching the competence of more than one dicastery are to be examined together by the dicasteries concerned.

To enable them to exchange advice, a meeting will be called by the moderator of the dicastery which has begun to deal with the matter, either on his own initiative or at the request of another dicastery concerned. However, if the subject matter demands it, it may be referred to a plenary session of the dicasteries concerned.

The meeting will be chaired by the moderator of the dicastery who called the meeting or by its secretary, if only the secretaries are meeting.

§ 2. Where needed, permanent interdicasterial commissions will be set up to deal with matters requiring mutual and frequent consultation.

Meetings of Cardinals

Art. 22 - By mandate of the Supreme Pontiff, the cardinals in charge of dicasteries meet together several times a year to examine more important questions, coordinate their activities, so that they may be able to exchange information and take counsel.

Art. 23 - More serious business of a general character can be usefully dealt with, if the Supreme Pontiff so decides, by the cardinals assembled in plenary consistory according to proper law.

Council of Cardinals for the Study of Organizational and Economic Questions of the Apostolic See

Art. 24 - The Council of Cardinals for the Study of Organizational and Economic Questions of the Apostolic See consists of fifteen cardinals who head particular Churches from various parts of the world and are appointed by the Supreme Pontiff for a five-year term of office.

Art. 25 - § 1. The Council is convened by the cardinal secretary of state, usually twice a year, to consider those economic and organizational questions which relate to the administration of the Holy See, with the assistance, as needed, of experts in these affairs.

§ 2. The Council also considers the activities of the special institute which is erected and located within the State of Vatican City in order to safeguard and administer economic goods placed in its care with the purpose of supporting works of religion and charity. This institute is governed by a special law.

Relations with Particular Churches

Art. 26 - § 1. Close relations are to be fostered with particular Churches and groupings of bishops, seeking out their advice when preparing documents of major importance that have a general character.

§ 2. As far as possible, documents of a general character or having a special bearing on their particular Churches should be communicated to the bishops before they are made public.

§ 3. Questions brought before the dicasteries are to be diligently examined and, without delay, an answer or, at least, a written acknowledgement of receipt, insofar as this is necessary, should be sent.

Art. 27 - Dicasteries should not omit to consult with papal legates regarding business affecting the particular Churches where the legates are serving, nor should they omit to communicate to the legates the results of their deliberations.

"Ad limina" Visits

Art. 28 - In keeping with a venerable tradition and the prescriptions of law, bishops presiding over particular Churches visit the tombs of the Apostles at predetermined times and on that occasion present to the Roman Pontiff a report on the state of their diocese.

Art. 29 - These kinds of visits have a special importance in the life of the Church, marking as they do the summit of the relationship of the pastors of each particular Church with the Roman Pontiff. For he meets his brother bishops, and discusses with them matters concerning the good of the Churches and the bishops' role as shepherds, and he confirms and supports them in faith and charity. This strengthens the bonds of hierarchical communion and openly manifests the catholicity of the Church and the unity of the episcopal college.

Art. 30 - The ad limina visits also concern the dicasteries of the Roman Curia. For through these visits a helpful dialogue between the bishops and the Apostolic See is increased and deepened, information is shared, advice and timely suggestions are brought forward for the greater good and progress of the Churches and for the observance of the common discipline of the Church.

Art. 31 - These visits are to be prepared very carefully and appropriately so that they proceed well and enjoy a successful outcome in their three principal stages - namely, the pilgrimage to the tombs of the Princes of the Apostles and their veneration, the meeting with the Supreme Pontiff, and the meetings at the dicasteries of the Roman Curia.

Art. 32 - For this purpose, the report on the state of the diocese should be sent to the Holy See six months before the time set for the visit. It is to be examined with all diligence by the competent dicasteries, and their remarks are to be shared with a special committee convened for this purpose so that a brief synthesis of these may be drawn up and be readily at hand in the meetings.

Pastoral Character of the Activity of the Roman Curia

Art. 33 - The activity of all who work at the Roman Curia and the other institutes of the Holy See is a true ecclesial service, marked with a pastoral character, that all must discharge with a deep sense of duty as well as in a spirit of service, as it is a sharing in the world-wide mission of the bishop of Rome.

Art. 34 - Each individual dicastery pursues its own end, yet dicasteries cooperate with one another. Therefore, all who are working in the Roman Curia are to do so in such a way that their work may come together and be forged into one. Accordingly, all must always be prepared to offer their services wherever needed.

Art. 35 - Although any work performed within the institutes of the Holy See is a sharing in the apostolic action, priests are to apply themselves as best they can to the care of souls, without prejudice however to their own office.

Central Labour Office

Art. 36 - According to its own terms of reference, the Central Labour Office deals with working conditions within the

Roman Curia and related questions.

Regulations

Art. 37 - To this Apostolic Constitution is added an Ordo servandus or common norms setting forth the ways and means of transacting business in the Curia itself, without prejudice to the norms of this Constitution.

Art. 38 - Each dicastery is to have its own Ordo servandus or special norms setting forth the ways and means of transacting business within it.

The Ordo servandus of each dicastery shall be made public in the usual manner of the Apostolic See.

II SECRETARIAT OF STATE

Art. 39 - The Secretariat of State provides close assistance to the Supreme Pontiff in the exercise of his supreme office.

Art. 40 - The Secretariat is presided over by the cardinal secretary of state. It is composed of two sections, the First being the Section for General Affairs , under the direct control of the substitute, with the help of the assessor; the Second being the Section for Relations with States , under the direction of its own secretary, with the help of the undersecretary. Attached to this latter section is a council of cardinals and some bishops.

First Section

Art. 41 - § 1. It is the task of the First Section in a special way to expedite the business concerning the daily service of the Supreme Pontiff; to deal with those matters which arise outside the ordinary competence of the dicasteries of the Roman Curia and of the other institutes of the Apostolic See; to foster relations with those dicasteries and coordinate their work, without prejudice to their autonomy; to supervise the office and work of the legates of the Holy See, especially as concerns the particular Churches. This section deals with everything concerning the ambassadors of States to the Holy See.

§ 2. In consultation with other competent dicasteries, this section takes care of matters concerning the presence and activity of the Holy See in international organizations, without prejudice to art. 46. It does the same concerning Catholic international organizations.

Art. 42 - It is also the task of the First Section:

1: to draw up and dispatch apostolic constitutions, decretal letters, apostolic letters, epistles, and other documents entrusted to it by the Supreme Pontiff;

2. to prepare the appropriate documents concerning appointments to be made or approved by the Supreme Pontiff in the Roman Curia and in the other institutes depending on the Holy See;

3. to guard the leaden seal and the Fisherman's ring.

Art. 43 - It is likewise within the competence of this Section:

1. to prepare for publication the acts and public documents of the Holy See in the periodical entitled Acta Apostolicæ Sedis ;

2. through its special office commonly known as the Press Office , to publish official announcements of acts of the Supreme Pontiff or of the activities of the Holy See;

3. in consultation with the Second Section, to oversee the newspaper called L'Osservatore romano , the Vatican Radio Station, and the Vatican Television Centre.

Art. 44 - Through the Central Statistical Office , it collects, organizes, and publishes all data, set down according to statistical standards, concerning the life of the whole Church throughout the world.

Second Section

Art. 45 - The Section for Relations with States has the special task of dealing with heads of government.

Art. 46 - The Section for Relations with States has within its competence:

1. to foster relations, especially those of a diplomatic nature, with States and other subjects of public international law, and to deal with matters of common interest, promoting the good of the Church and of civil society by means of concordats and other agreements of this kind, if the case arises, while respecting the considered opinions of the groupings of bishops that may be affected;

2. in consultation with the competent dicasteries of the Roman Curia, to represent the Holy See at international organizations and meetings concerning questions of a public nature;

3. within the scope of its competence, to deal with what pertains to the papal legates.

Art. 47 - § 1. In special circumstances and by mandate of the Supreme Pontiff, and in consultation with the competent dicasteries of the Roman Curia, this Section sees to the provision of particular Churches and the constitution of and changes to these Churches and their groupings.

§ 2. In other cases, especially where a concordat is in force, and without prejudice to art. 78, this Section has competence to transact business with civil governments.

III CONGREGATIONS

Congregation for the Doctrine of the Faith

Art. 48 - The proper duty of the Congregation for the Doctrine of the Faith is to promote and safeguard the doctrine on faith and morals in the whole Catholic world; so it has competence in things that touch this matter in any way.

Art. 49 - Fulfilling its duty of promoting doctrine, the Congregation fosters studies so that the understanding of the faith may grow and a response in the light of the faith may be given to new questions arising from the progress of the sciences or human culture.

Art. 50 - It helps the bishops, individually or in groups, in carrying out their office as authentic teachers and doctors of the faith, an office that carries with it the duty of promoting and guarding the integrity of that faith.

Art. 51 - To safeguard the truth of faith and the integrity of morals, the Congregation takes care lest faith or morals suffer harm through errors that have been spread in any way whatever.

Wherefore:

1. it has the duty of requiring that books and other writings touching faith or morals, being published by the Christian faithful, be subjected to prior examination by the competent authority;

2. it examines carefully writings and opinions that seem to be contrary or dangerous to true faith, and, if it is established that they are opposed to the teaching of the Church, reproves them in due time, having given authors full opportunity to explain their minds, and having forewarned the Ordinary concerned; it brings suitable remedies to bear, if this be opportune.

3. finally, it takes good care lest errors or dangerous doctrines, which may have been spread among the Christian people, do not go without apt rebuttal.

Art. 52 - The Congregation examines offences against the faith and more serious ones both in behaviour or in the celebration of the sacraments which have been reported to it and, if need be, proceeds to the declaration or imposition of canonical sanctions in accordance with the norms of common or proper law.

Art. 53 - It is to examine whatever concerns the privilege of the faith, both in law and in fact.

Art. 54 - Documents being published by other dicasteries of the Roman Curia, insofar as they touch on the doctrine of faith or morals, are to be subjected to its prior judgement.

Art. 55 - Established within the Congregation for the Doctrine of the Faith are the Pontifical Biblical Commission and the International Theological Commission, which act according to their own approved norms and are presided over by the cardinal prefect of this Congregation.

Congregation for the Oriental Churches

Art. 56 - The Congregation for the Oriental Churches considers those matters, whether concerning persons or things, affecting the Catholic Oriental Churches.

Art. 57 - § 1. The patriarchs and major archbishops of the Oriental Churches, and the president of the Council for Promoting Christian Unity, are ipso iure members of this Congregation.

§ 2. The consultors and officials are to be selected in such a way as to reflect as far as possible the diversity of rites.

Art. 58 - § 1. The competence of this Congregation extends to all matters which are proper to the Oriental Churches and which are to be referred to the Apostolic See, whether concerning the structure and organization of the Churches, the exercise of the office of teaching, sanctifying and governing, or the status, rights, and obligations of persons. It also handles everything that has to be done concerning quinquennial reports and the ad limina visits in accordance with arts. 31-32.

§ 2. This however does not infringe on the proper and exclusive competence of the Congregations for the Doctrine of the Faith and for the Causes of Saints, of the Apostolic Penitentiary, the Supreme Tribunal of the Apostolic Signatura or the Tribunal of the Roman Rota, as well as of the Congregation for Divine Worship and the Discipline of the Sacraments for what pertains to dispensation from a marriage ratum et non consummatum .

In matters which also affect the faithful of the Latin Church, the Congregation will proceed, if the matter is sufficiently important, in consultation with the dicastery that has competence in the same matter for the faithful of the Latin Church.

Art. 59 - The Congregation pays careful attention to communities of Oriental Christian faithful living within the territories of the Latin Church, and attends to their spiritual needs by providing visitators and even a hierarchy of their own, so far as possible and where numbers and circumstances demand it, in consultation with the Congregation competent for the establishment of particular Churches in that region.

Art. 60 - In regions where Oriental rites have been preponderant from ancient times, apostolic and missionary activity depends solely on this Congregation, even if it is carried out by missionaries of the Latin Church.

Art. 61 - The Congregation collaborates with the Council for Promoting Christian Unity in matters which concern relations with non-Catholic Oriental Churches and with the Council for Inter-religious Dialogue in matters within the scope of this Council.

Congregation for Divine Worship and the Discipline of the Sacraments

Art. 62 - The Congregation for Divine Worship and the Discipline of the Sacraments does whatever pertains to the Apostolic See concerning the regulation and promotion of the sacred liturgy, primarily of the sacraments, without prejudice to the competence of the Congregation for the Doctrine of the Faith.

Art. 63 - It fosters and safeguards the regulation of the administration of the sacraments, especially regarding their valid and licit celebration. It grants favours and dispensations not contained in the faculties of diocesan bishops in this matter.

Art. 64 - § 1. By effective and suitable means, the Congregation promotes liturgical pastoral activity, especially regarding the celebration of the Eucharist; it gives support to the diocesan bishops so that the Christian faithful may share more and more actively in the sacred liturgy.

§ 2. It sees to the drawing up and revision of liturgical texts. It reviews particular calendars and proper texts for the Mass and the Divine Office for particular Churches and institutes which enjoy that right.

§ 3. It grants the recognitio to translations of liturgical books and their adaptations that have been lawfully prepared by conferences of bishops.

Art. 65 - The Congregation fosters commissions or institutes for promoting the liturgical apostolate or sacred music, song or art, and it maintains relations with them. In accordance with the law, it erects associations which have an international character or approves or grants the recognitio to their statutes. Finally, it contributes to the progress of liturgical life by encouraging meetings from various regions.

Art. 66 - The Congregation provides attentive supervision to ensure that liturgical norms are accurately observed, and that abuses are avoided and eliminated where they are found to exist.

Art. 67 - This Congregation examines the fact of non-consummation in a marriage and the existence of a just cause for granting a dispensation. It receives all the acts together with the votum of the bishop and the remarks of the defender of the bond, weighs them according to its own special procedure, and, if the case warrants it, submits a petition to the Supreme Pontiff requesting the dispensation.

Art. 68 - It is also competent to examine, in accordance with the law, cases concerning the nullity of sacred ordination.

Art. 69 - This Congregation has competence concerning the cult of sacred relics, the confirmation of heavenly patrons and the granting of the title of minor basilica.

Art. 70 - The Congregation gives assistance to bishops so that, in addition to liturgical worship, the prayers and pious exercises of the Christian people, in full harmony with the norms of the Church, may be fostered and held in high esteem.

Congregation for the Causes of Saints

Art. 71 - The Congregation for the Causes of Saints deals with everything which, according to the established way, leads to the canonization of the servants of God.

Art. 72 - § 1. With special norms and timely advice, it assists diocesan bishops, who have competence to instruct the cause.

§ 2. It considers causes that have already been instructed, inquiring whether everything has been carried out in accordance with the law. It thoroughly examines the causes that have thus been reviewed, in order to judge whether everything required is present for a favorable recommendation to be submitted to the Supreme Pontiff, according to the previously established classification of causes.

Art. 73 - The Congregation also is competent to examine what is necessary for the granting of the title of doctor to saints, after having received the recommendation of the Congregation for the Doctrine of the Faith concerning

outstanding teaching.

Art. 74 - Moreover, it has competence to decide everything concerning the authentication of holy relics and their preservation.

Congregation for Bishops

Art. 75 - The Congregation for Bishops examines what pertains to the establishment and provision of particular Churches and to the exercise of the episcopal office in the Latin Church, without prejudice to the competence of the Congregation for the Evangelization of Peoples.

Art. 76 - This Congregation deals with everything concerning the constitution, division, union, suppression, and other changes of particular Churches and of their groupings. It also erects military ordinariates for the pastoral care of the armed forces.

Art. 77 - It deals with everything concerning the appointment of bishops, even titular ones, and generally with the provision of particular Churches.

Art. 78 - Whenever it is a matter of dealing with civil governments, either in establishing or modifying particular Churches and their groupings or in the provision of these Churches, this Congregation must procede only after consultation with the Section for Relations with States of the Secretariat of State.

Art. 79 - Furthermore, the Congregation applies itself to matters relating to the correct exercise of the pastoral function of the bishops, by offering them every kind of assistance. For it is part of its duty to initiate general apostolic visitations where needed, in agreement with the dicasteries concerned and, in the same manner, to evaluate their results and to propose to the Supreme Pontiff the appropriate actions to be taken.

Art. 80 - This Congregation has competence over everything involving the Holy See in the matter of personal prelatures.

Art. 81 - For the particular Churches assigned to its care, the Congregation takes care of everything with respect to the ad limina visits; so it studies the quinquennial reports, submitted in accordance with art. 32. It is available to the bishops who come to Rome, especially to see that suitable arrangements are made for the meeting with the Supreme Pontiff and for other meetings and pilgrimages. When the visit is completed, it communicates in writing to the diocesan bishops the conclusions concerning their dioceses.

Art. 82 - The Congregation deals with matters pertaining to the celebration of particular councils as well as the erection of conferences of bishops and the recognitio of their statutes. It receives the acts of these bodies and, in consultation with the dicasteries concerned, it examines the decrees which require the recognitio of the Apostolic See.

Pontifical Commission for Latin America

Art. 83 - § 1. The function of the Pontifical Commission for Latin America is to be available to the particular Churches in Latin America, by counsel and by action, taking a keen interest in the questions that affect the life and progress of those Churches; and especially to help the Churches themselves in the solution of those questions, or to be helpful to those dicasteries of the Curia that are involved by reason of their competence.

§ 2. It is also to foster relations between the national and international ecclesiastical institutes that work for the regions of Latin America and the dicasteries of the Roman Curia.

Art. 84 - § 1. The president of the Commission is the prefect of the Congregation for Bishops, assisted by a bishop as vice-president.

They have as counselors some bishops either from the Roman Curia or selected from the Churches of Latin America.

§ 2. The members of the Commission are selected either from the dicasteries of the Roman Curia or from the Consejo episcopal latinoamericano , whether they be from among the bishops of Latin America or from the institutes mentioned in the preceding article.

§ 3. The Commission has its own staff.

Congregation for the Evangelization of Peoples

Art. 85 - It pertains to the Congregation for the Evangelization of Peoples to direct and coordinate throughout the world the actual work of spreading the Gospel as well as missionary cooperation, without prejudice to the competence of the Congregation for the Oriental Churches.

Art. 86 - The Congregation promotes research in mission theology, spirituality and pastoral work; it likewise proposes principles, norms, and procedures, fitting the needs of time and place, by which evangelization is carried out.

Art. 87 - The Congregation strives to bring the people of God, well aware of their duty and filled with missionary spirit, to cooperate effectively in the missionary task by their prayers and the witness of their lives, by their active work and contributions.

Art. 88 - § 1. It takes steps to awaken missionary vocations, whether clerical, religious, or lay, and advises on a suitable distribution of missionaries.

§ 2. In the territories subject to it, it also cares for the education of the secular clergy and of catechists, without prejudice to the competence of the Congregation of Seminaries and Educational Institutions concerning the general programme of studies, as well as what pertains to the universities and other institutes of higher education.

Art. 89 - Within its competence are mission territories, the evangelization of which is committed to suitable institutes and societies and to particular Churches. For these territories it deals with everything pertaining to the establishment and change of ecclesiastical circumscriptions and to the provision of these Churches, and it carries out the other functions that the Congregation of Bishops fulfills within the scope of its competence.

Art. 90 - § 1. With regard to members of institutes of consecrated life, whether these are erected in the mission territories or are just working there, the Congregation enjoys competence in matters touching those members as missionaries, individually and collectively, without prejudice to art. 21, § 1.

§ 2. Those societies of apostolic life that were founded for the missions are subject to this Congregation.

Art. 91 - To foster missionary cooperation, even through the effective collection and equal distribution of subsidies, the Congregation chiefly uses the Pontifical Missionary Works, namely, the Society for the Propagation of the Faith, the Society of St. Peter the Apostle, and the Holy Childhood Association, as well as the Pontifical Missionary Union of the Clergy.

Art. 92 - Through a special office, the Congregation administers its own funds and other resources destined for the missions, with full accountability to the Prefecture for the Economic Affairs of the Holy See.

Congregation for the Clergy

Art. 93 - Without prejudice to the right of bishops and their conferences, the Congregation for the Clergy examines matters regarding priests and deacons of the secular clergy, with regard to their persons and pastoral ministry, and with regard to resources available to them for the exercise of this ministry; and in all these matters the Congregation offers timely assistance to the bishops.

Art. 94 - It has the function of promoting the religious education of the Christian faithful of all ages and conditions; it issues timely norms so that catechetical instruction is correctly conducted; it gives great attention so that catechetical

formation is properly given; and, with the assent of the Congregation for the Doctrine of the Faith, it grants the prescribed approval of the Holy See for catechisms and other writings pertaining to catechetical instruction. It is available to catechetical offices and international initiatives on religious education, coordinates their activities and, where necessary, lends assistance.

Art. 95 - § 1. The Congregation is competent concerning the life, conduct, rights, and obligations of clergy.

§ 2. It advises on a more suitable distribution of priests.

§ 3. It fosters the ongoing education of clergy, especially concerning their sanctification and the effective exercise of their pastoral ministry, most of all in the fitting preaching of the Word of God.

Art. 96 - This Congregation deals with everything that has to do with the clerical state as such for all clergy, including religious, in consultation with the dicasteries involved when the matter so requires.

Art. 97 - The Congregation deals with those matters that are within the competence of the Holy See:

1. both those concerning presbyteral councils, colleges of consultors, chapters of canons, pastoral councils, parishes, churches, shrines, or those concerning clerical associations, or ecclesiastical archives and records;

2. and those concerning Mass obligations as well as pious wills in general and pious foundations.

Art. 98 - The Congregation carries out everything that pertains to the Holy See regarding the regulation of ecclesiastical goods, and especially their correct administration; it grants the necessary approvals and recognitiones, and it further sees to it that serious thought is given to the support and social security of the clergy.

Pontifical Commission for Preserving the Patrimony of Art and History

Art. 99 - At the Congregation for the Clergy there exists the Pontifical Commission for Preserving the Patrimony of Art and History that has the duty of acting as curator for the artistic and historical patrimony of the whole Church.

Art. 100 - To this patrimony belong, in the first place, all works of every kind of art of the past, works that must be kept and preserved with the greatest care. Those works whose proper use has ceased are to be kept in a suitable manner in museums of the Church or elsewhere.

Art. 101 - § 1. Outstanding among valuable historical objects are all documents and materials referring and testifying to pastoral life and care, as well as to the rights and obligations of dioceses, parishes, churches, and other juridical persons in the Church.

§ 2. This historical patrimony is to be kept in archives or also in libraries and everywhere entrusted to competent curators lest testimonies of this kind be lost.

Art. 102 - The Commission lends its assistance to particular Churches and conferences of bishops and together with them, where the case arises, sees to the setting up of museums, archives, and libraries, and ensures that the entire patrimony of art and history in the whole territory is properly collected and safeguarded and made available to all who have an interest in it.

Art. 103 - In consultation with the Congregation for Seminaries and Educational Institutions and the Congregation for Divine Worship and the Discipline of the Sacraments, the Commission has the task of striving to make the people of God more and more aware of the need and importance of conserving the artistic and historical patrimony of the Church.

Art. 104 - The president of the Commission is the cardinal prefect of the Congregation for the Clergy, assisted by the secretary of the Commission. Moreover, the Commission has its own staff.

Congregation for Institutes of Consecrated Life and for Societies of Apostolic Life

Art. 105 - The principal function of the Congregation for Institutes of Consecrated Life and for Societies of Apostolic Life is to promote and supervise in the whole Latin Church the practice of the evangelical counsels as they are lived in approved forms of consecrated life and, at the same time, the work of societies of apostolic life.

Art. 106 - § 1. The Congregation erects and approves religious and secular institutes and societies of apostolic life, or passes judgement on the suitability of their erection by the diocesan bishop. It also suppresses such institutes and societies if necessary.

§ 2. The Congregation is also competent to establish, or, if need be, to rescind, the unions or federations of institutes and societies.

Art. 107 - The Congregation for its part takes care that institutes of consecrated life and societies of apostolic life grow and flourish according to the spirit of their founders and healthy traditions, faithfully follow their proper purpose and truly benefit the salvific mission of the Church.

Art. 108 - § 1. It deals with everything which, in accordance with the law, belongs to the Holy See concerning the life and work of the institutes and societies, especially the approval of their constitutions, their manner of government and apostolate, the recruitment and training as well as the rights and obligations of members, dispensation from vows and the dismissal of members, and the administration of goods.

§ 2. However, the organization of philosophical and theological studies and other academic subjects comes within the competence of the Congregation of Seminaries and Institutes of Studies.

Art. 109 - It is the function of this Congregation to establish conferences of major superiors of men and women religious, to grant approval to their statutes and to give great attention in order that their activities are directed to achieving their true purpose.

Art. 110 - The Congregation has competence also regarding eremetical life, the order of virgins and their associations as well as other forms of consecrated life.

Art. 111 - Its competence also embraces the third orders and associations of the faithful which are erected with the intention that, after a period of preparation, they may eventually become institutes of consecrated life or societies of apostolic life.

Congregation of Seminaries and Educational Institutions

Art. 112 - The Congregation of Seminaries and Educational Institutions gives practical expression to the concern of the Apostolic See for the training of those who are called to holy orders, and for the promotion and organization of Catholic education.

Art. 113 - § 1. It is available to the bishops so that in their Churches vocations to the sacred ministry may be cultivated to the highest degree, and seminaries may be established and conducted in accordance with the law, where students may be suitably trained, receiving a solid formation that is human and spiritual, doctrinal and pastoral.

§ 2. It carefully sees to it that the way of life and government of the seminaries be in full harmony with the programme of priestly education, and that the superiors and teachers, by the example of their life and sound doctrine, contribute their utmost to the formation of the personality of the sacred ministers.

§ 3. It is also its responsibility to erect interdiocesan seminaries and to approve their statutes.

Art. 114 - The Congregation makes every effort to see that the fundamental principles of Catholic education as set out by the magisterium of the Church be ever more deeply researched, championed, and known by the people of God.

It also takes care that in this matter the Christian faithful may be able to fulfill their duties and also strive to bring civil society to recognize and protect their rights.

Art. 115 - The Congregation sets the norms by which Catholic schools are governed. It is available to diocesan bishops so that, wherever possible, Catholic schools be established and fostered with the utmost care, and that in every school appropriate undertakings bring catechetical instruction and pastoral care to the Christian pupils.

Art. 116 - § 1. The Congregation labours to ensure that there be in the Church a sufficient number of ecclesiastical and Catholic universities as well as other educational institutions in which the sacred disciplines may be pursued in depth, studies in the humanities and the sciences may be promoted, with due regard for Christian truth, so that the Christian faithful may be suitably trained to fulfill their own tasks.

§ 2. It erects or approves ecclesiastical universities and institutions, ratifies their statutes, exercises the highest supervision over them and ensures that the integrity of the Catholic faith is preserved in teaching doctrine.

§ 3. With regard to Catholic universities, it deals with those matters that are within the competence of the Holy See.

§ 4. It fosters cooperation and mutual help between universities and their associations and serves as a resource for them.

IV TRIBUNALS

Apostolic Penitentiary

Art. 117 - The competence of the Apostolic Penitentiary regards the internal forum and indulgences.

Art. 118 - For the internal forum, whether sacramental or non-sacramental, it grants absolutions, dispensations, commutations, validations, condonations, and other favours.

Art. 119 - The Apostolic Penitentiary sees to it that in the patriarchal basilicas of Rome there be a sufficient number of penitentiaries supplied with the appropriate faculties.

Art. 120 - This dicastery is charged with the granting and use of indulgences, without prejudice to the right of the Congregation for the Doctrine of the Faith to review what concerns dogmatic teaching about them.

Supreme Tribunal of the Apostolic Signatura

Art. 121 - The Apostolic Signatura functions as the supreme tribunal and also ensures that justice in the Church is correctly administered.

Art. 122 - This Tribunal adjudicates:

1. complaints of nullity and petitions for total reinstatement against sentences of the Roman Rota;

2. in cases concerning the status of persons, recourses when the Roman Rota has denied a new examination of the case;

3. exceptions of suspicion and other proceedings against judges of the Roman Rota arising from the exercise of their functions;

4. conflicts of competence between tribunals which are not subject to the same appellate tribunal.

Art. 123 - § 1. The Signatura adjudicates recourses lodged within the peremptory limit of thirty canonical days against

singular administrative acts whether issued by the dicasteries of the Roman Curia or approved by them, whenever it is contended that the impugned act violated some law either in the decision-making process or in the procedure used.

§ 2. In these cases, in addition to the judgement regarding illegality of the act, it can also adjudicate, at the request of the plaintiff, the reparation of damages incurred through the unlawful act.

§ 3. The Signatura also adjudicates other administrative controversies referred to it by the Roman Pontiff or by dicasteries of the Roman Curia, as well as conflicts of competence between these dicasteries.

Art. 124 - The Signatura also has the responsibility:

1. to exercise vigilance over the correct administration of justice, and, if need be, to censure advocates and procurators;

2. to deal with petitions presented to the Apostolic See for obtaining the commission of a case to the Roman Rota or some other favour relative to the administration of justice;

3. to extend the competence of lower tribunals;

4. to grant its approval to tribunals for appeals reserved to the Holy See, and to promote and approve the erection of interdiocesan tribunals.

Art. 125 - The Apostolic Signatura is governed by its own law.

Tribunal of the Roman Rota

Art. 126 - The Roman Rota is a court of higher instance at the Apostolic See, usually at the appellate stage, with the purpose of safeguarding rights within the Church; it fosters unity of jurisprudence, and, by virtue of its own decisions, provides assistance to lower tribunals.

Art. 127 - The judges of this Tribunal constitute a college. Persons of proven doctrine and experience, they have been selected by the Supreme Pontiff from various parts of the world. The Tribunal is presided over by a dean, likewise appointed by the Supreme Pontiff from among the judges and for a specific term of office.

Art. 128 - This Tribunal adjudicates:

1. in second instance, cases that have been decided by ordinary tribunals of first instance and are being referred to the Holy See by legitimate appeal;

2. in third or further instance, cases already decided by the same Apostolic Tribunal and by any other tribunals, unless they have become a res iudicata .

Art. 129 - § 1. The Tribunal, however, judges the following in first instance:

1. bishops in contentious matters, unless it is a question of the rights or temporal goods of a juridical person represented by the bishop;

2. abbots primate or abbots superior of a monastic congregation and supreme moderators of religious institutes of pontifical right;

3. dioceses or other ecclesiastical persons, whether physical or juridical, which have no superior below the Roman Pontiff;

4. cases which the Supreme Pontiff commits to this Tribunal.

§ 2. It deals with the same cases even in second and further instances, unless other provisions are made.

Art. 130 - The Tribunal of the Roman Rota is governed by its own law.

V PONTIFICAL COUNCILS

Pontifical Council for the Laity

Art. 131 - The Pontifical Council for the Laity is competent in those matters pertaining to the Apostolic See regarding the promotion and coordination of the apostolate of the laity and, generally, in those matters respecting the Christian life of laypeople as such.

Art. 132 - The president is assisted by an Advisory Board of cardinals and bishops. Figuring especially among the members of the Council are certain Christian faithful engaged in various fields of activity.

Art. 133 - § 1. The Council is to urge and support laypeople to participate in the life and mission of the Church in their own way, as individuals or in associations, especially so that they may carry out their special responsibility of filling the temporal order with the spirit of the Gospel.

§ 2. It fosters joint action among laypeople in catechetical instruction, in liturgical and sacramental life as well as in works of mercy, charity, and social development.

§ 3. The Council attends to and organizes international conferences and other projects concerning the apostolate of the laity.

Art. 134 - Within the parameters of its own competence, the Council performs all activities regarding lay associations of the Christian faithful; it erects associations of an international character and provides approval or recognitio for their statutes, without prejudice to the competence of the Secretariat of State. As for secular third orders, the Council deals only with those matters concerning their apostolic activities.

Pontifical Council for Promoting Christian Unity

Art. 135 - It is the function of the Pontifical Council for Promoting Christian Unity to engage in ecumenical work through timely initiatives and activities, labouring to restore unity among Christians.

Art. 136 - § 1. It sees that the decrees of the Second Vatican Council pertaining to ecumenism are put into practice.

It deals with the correct interpretation of the principles of ecumenism and enjoins that they be carried out.

§ 2. It fosters, brings together, and coordinates national and international Catholic organizations promoting Christian unity, and supervises their undertakings.

§ 3. After prior consultation with the Supreme Pontiff, the Council maintains relations with Christians of Churches and ecclesial communities that do not yet have full communion with the Catholic Church, and especially organizes dialogue and meetings to promote unity with them, with the help of theological experts of sound doctrine. As often as may seem opportune, the Council deputes Catholic observers to Christian meetings, and it invites observers from other Churches and ecclesial communities to Catholic meetings.

Art. 137 - § 1. Since the Council often deals with matters which by their very nature touch on questions of faith, it must proceed in close connection with the Congregation for the Doctrine of the Faith, especially if declarations and public documents have to be issued.

§ 2. In dealing with important matters concerning the separated Oriental Churches, the Council must first hear the Congregation for the Oriental Churches.

Art. 138 - Within the Council there exists a Commission to study and deal with matters concerning the Jews from a religious perspective, the Commission for Religious Relations with the Jews; the president of the Council presides over the Commission.

Pontifical Council for the Family

Art. 139 - The Pontifical Council for the Family promotes the pastoral care of families, protects their rights and dignity in the Church and in civil society, so that they may ever be more able to fulfill their duties.

Art. 140 - The president is assisted by an advisory board of bishops. Figuring above all among the members of the Council are laypeople, both men and women, especially married ones, from all over the world.

Art. 141 - § 1. The Council works for a deeper understanding of the Church's teaching on the family and for its spread through suitable catechesis. It encourages studies in the spirituality of marriage and the family.

§ 2. It works together with the bishops and their conferences to ensure the accurate recognition of the human and social conditions of the family institution everywhere and to ensure a strong general awareness of initiatives that help pastoral work for families.

§ 3. The Council strives to ensure that the rights of the family be acknowledged and defended even in the social and political realm. It also supports and coordinates initiatives to protect human life from the first moment of conception and to encourage responsible procreation.

§ 4. Without prejudice to art. 133, it follows the activities of institutes and associations which work for the good of the family.

Pontifical Council for Justice and Peace

Art. 142 - The goal of the Pontifical Council for Justice and Peace is to promote justice and peace in the world in accordance with the Gospel and the social teaching of the Church.

Art. 143 - § 1. The Council makes a thorough study of the social teaching of the Church and ensures that this teaching is widely spread and put into practice among people and communities, especially regarding the relations between workers and management, relations that must come to be more and more imbued with the spirit of the Gospel.

§ 2. It collects information and research on justice and peace, about human development and violations of human rights; it ponders all this, and, when appropriate, shares its conclusions with the groupings of bishops. It cultivates relationships with Catholic international organizations and other institutions, even ones outside the Catholic Church, which sincerely strive to achieve peace and justice in the world.

§ 3. It works to form among peoples a mentality which fosters peace, especially on the occasion of World Peace Day.

Art. 144 - The Council has a special relationship with the Secretariat of State, especially whenever matters of peace and justice have to be dealt with in public by documents or announcements.

Pontifical Council "Cor unum"

Art. 145 - The Pontifical Council "Cor unum" shows the solicitude of the Catholic Church for the needy, to foster human fraternity and make manifest Christ's charity.

Art. 146 - It is the function of the Council:

1. to stimulate the Christian faithful as participants in the mission of the Church, to give witness to evangelical charity

and to support them in this concern;

2. to foster and coordinate the initiatives of Catholic organizations that labour to help peoples in need, especially those who go to the rescue in the more urgent crises and disasters, and to facilitate their relations with public international organizations operating in the same field of assistance and good works;

3. to give serious attention and promote plans and undertakings for joint action and neighbourly help serving human progress.

Art. 147 - The president of this Council is the same as the president of the Pontifical Council for Justice and Peace, who sees to it that the activities of both dicasteries are closely coordinated.

Art. 148 - To ensure that the objectives of the Council are more effectively achieved, among members of the Council are also men and women representing Catholic charitable organizations.

Pontifical Council for the Pastoral Care of Migrants and Itinerant People

Art. 149 - The Pontifical Council for the Pastoral Care of Migrants and Itinerant People brings the pastoral concern of the Church to bear on the special needs of those who have been forced to leave their native land or who do not have one. It also sees to it that these matters are considered with the attention they deserve.

Art. 150 - § 1. The Council ensures that in the particular Churches refugees and exiles, migrants, nomads, and circus workers receive effective and special spiritual care, even, if necessary, by means of suitable pastoral structures.

§ 2. It likewise fosters pastoral solicitude in these same Churches for sailors, at sea and in port, especially through the Apostleship of the Sea, over which it exercises ultimate direction.

§ 3. The Council has the same concern for those who work in airports or airplanes.

§ 4. It works to ensure that the Christian people become aware of the needs of these people and effectively demonstrate a fraternal attitude towards them, especially on the occasion of World Migration Day.

Art. 151 - The Council works to ensure that journeys which Christians undertake for reasons of piety, study, or recreation, contribute to their moral and religious formation, and it is available to the particular Churches in order that all who are away from home receive suitable spiritual care.

Pontifical Council for Pastoral Assistance to Health Care Workers

Art. 152 - The Pontifical Council for Pastoral Assistance to Health Care Workers shows the solicitude of the Church for the sick by helping those who serve the sick and suffering, so that their apostolate of mercy may ever more effectively respond to people's needs.

Art. 153 - § 1. The Council is to spread the Church's teaching on the spiritual and moral aspects of illness as well as the meaning of human suffering.

§ 2. It lends its assistance to the particular Churches to ensure that health care workers receive spiritual help in carrying out their work according to Christian teachings, and especially that in turn the pastoral workers in this field may never lack the help they need to carry out their work.

§ 3. The Council fosters studies and actions which international Catholic organizations or other institutions undertake in this field.

§ 4. With keen interest it follows new health care developments in law and science so that these may be duly taken into account in the pastoral work of the Church.

Pontifical Council for the Interpretation of Legislative Texts

Art. 154 - The function of the Pontifical Council for the Interpretation of Legislative Texts consists mainly in interpreting the laws of the Church.

Art. 155 -With regard to the universal laws of the Church, the Council is competent to publish authentic interpretations confirmed by pontifical authority, after consulting the dicasteries concerned in questions of major importance.

Art. 156 - This Council is at the service of the other Roman dicasteries to assist them to ensure that general executory decrees and instructions which they are going to publish are in conformity with the prescriptions of the law currently in force and that they are drawn up in a correct juridical form.

Art. 157 - Moreover, the general decrees of the conferences of bishops are to be submitted to this Council by the dicastery which is competent to grant them the recognitio , in order that they be examined from a juridical perspective.

Art. 158 - At the request of those interested, this Council determines whether particular laws and general decrees issued by legislators below the level of the supreme authority are in agreement or not with the universal laws of the Church.

Pontifical Council for Inter-Religious Dialogue

Art. 159 - The Pontifical Council for Inter-Religious Dialogue fosters and supervises relations with members and groups of non-Christian religions as well as with those who are in any way endowed with religious feeling.

Art. 160 - The Council fosters suitable dialogue with the followers of other religions and encourages various kinds of relations with them. It promotes appropriate studies and conferences to develop mutual information and esteem, so that human dignity and the spiritual and moral riches of people may ever grow. The Council sees to the formation of those who engage in this kind of dialogue.

Art. 161 - When the matter under consideration so requires, the Council must proceed in the exercise of its own function in consultation with the Congregation for the Doctrine of the Faith, and, if need be, with the Congregations for the Oriental Churches and for the Evangelization of Peoples.

Art. 162 - This Council has a Commission, under the direction of the president of the Council, for fostering relations with Muslims from a religious perspective.

Pontifical Council for Dialogue with Non-Believers

Art. 163 - The Pontifical Council for Dialogue with Non-Believers shows the pastoral solicitude of the Church for those who do not believe in God or who profess no religion.

Art. 164 - It promotes the study of atheism and of the lack of faith and religion, looking into their causes and their consequences with regard to the Christian faith, so that suitable assistance may be given to pastoral action through the work especially of Catholic educational institutions.

Art. 165 - The Council sets up dialogue with atheists and unbelievers whenever they agree to sincere cooperation, and it is represented by true specialists at conferences on this matter.

Pontifical Council for Culture

Art. 166 - The Pontifical Council for Culture fosters relations between the Holy See and the realm of human culture, especially by promoting communication with various contemporary institutions of learning and teaching, so that secular culture may be more and more open to the Gospel, and specialists in the sciences, literature, and the arts may feel themselves called by the Church to truth, goodness, and beauty.

Art. 167 - The Council has its own special structure. The president is assisted by an advisory board and another board, composed of specialists of various disciplines from several parts of the world.

Art. 168 - The Council on its own undertakes suitable projects with respect to culture. It follows through on those which are undertaken by various institutes of the Church, and, so far as necessary, lends them assistance. In consultation with the Secretariat of State, it shows interest in measures adopted by countries and international agencies in support of human culture and, as appropriate, it is present in the principal organizations in the field of culture and fosters conferences.

Pontifical Council for Social Communications

Art. 169 - § 1. The Pontifical Council for Social Communications is involved in questions regarding the means of social communication, so that, also by these means, human progress and the message of salvation may benefit secular culture and mores.

§ 2. In carrying out its functions, the Council must proceed in close connection with the Secretariat of State.

Art. 170 - § 1. The chief task of this Council is to encourage and support in a timely and suitable way the action of the Church and her members in the many forms of social communication. It takes care to see that newspapers and periodicals, as well as films and radio or television broadcasts, are more and more imbued with a human and Christian spirit.

§ 2. With special solicitude the Council looks to Catholic newspapers and periodicals, as well as radio and television stations, that they may truly live up to their nature and function, by transmitting especially the teaching of the Church as it is laid out by the Church's magisterium, and by spreading religious news accurately and faithfully.

§ 3. It fosters relations with Catholic associations active in social communications.

§ 4. It takes steps to make the Christian people aware, especially on the occasion offered by World Communications Day, of the duty of every person to work to ensure that the media are of service to the Church's pastoral mission.

VI ADMINISTRATIVE SERVICES

Apostolic Camera

Art. 171 - § 1. The Apostolic Camera, presided over by the cardinal camerlengo of the Holy Roman Church, assisted by the vice-camerlengo and the other prelates of the Camera, chiefly exercises the functions assigned to it by the special law on the vacancy of the Apostolic See.

§ 2. When the Apostolic See falls vacant, it is the right and the duty of the cardinal camerlengo of the Holy Roman Church, personally or through his delegate, to request reports from all the administrations dependent on the Holy See on their patrimonial and economic status as well as information on any extraordinary business that may at that time be under way, and, from the Prefecture for the Economic Affairs of the Holy See he shall request a financial statement on income and expenditures of the previous year and the budgetary estimates for the following year. He is obliged to submit these reports and estimates to the College of Cardinals.

Administration of the Patrimony of the Apostolic See

Art. 172 - It is the function of the Administration of the Patrimony of the Apostolic See to administer the properties owned by the Holy See in order to provide the funds necessary for the Roman Curia to function.

Art. 173 - This Council is presided over by a cardinal assisted by a board of cardinals; and it is composed of two sections, the Ordinary Section and the Extraordinary, under the control of the prelate secretary.

Art. 174 - The Ordinary Section administers the properties entrusted to its care, calling in the advice of experts if needed; it examines matters concerning the juridical and economic status of the employees of the Holy See; it supervises institutions under its fiscal responsibility; it sees to the provision of all that is required to carry out the ordinary business and specific aims of the dicasteries; it maintains records of income and expenditures, prepares the accounts of the money received and paid out for the past year, and draws up the estimates for the year to come.

Art. 175 - The Extraordinary Section administers its own moveable goods and acts as a guardian for moveable goods entrusted to it by other institutes of the Holy See.

Prefecture for the Economic Affairs of the Holy See

Art. 176 - The Prefecture for the Economic Affairs of the Holy See has the function of supervising and governing the temporal goods of the administrations that are dependent on the Holy See, or of which the Holy See has charge, whatever the autonomy these administrations may happen to enjoy.

Art. 177 - The Prefecture is presided over by a cardinal assisted by a board of cardinals, with the collaboration of the prelate secretary and the general accountant.

Art. 178 - § 1. It studies the reports on the patrimonial and economic status of the Holy See, as well as the statements of income and expenditures for the previous year and the budget estimates for the following year of the administrations mentioned in art. 176, by inspecting books and documents, if need be.

§ 2. The Prefecture compiles the Holy See's consolidated financial statement of the previous year's expenditures as well as the consolidated estimates of the next year's expenditures, and submits these at specific times to higher authority for approval.

Art. 179 - § 1. The Prefecture supervises financial undertakings of the administrations and expresses its opinion concerning projects of major importance.

§ 2. It inquires into damages inflicted in whatever manner on the patrimony of the Holy See, and, if need be, lodges penal or civil actions to the competent tribunals.

VII OTHER INSTITUTES OF THE ROMAN CURIA

Prefecture of the Papal Household

Art. 180 - The Prefecture of the Papal Household looks after the internal organization of the papal household, and supervises everything concerning the conduct and service of all clerics and laypersons who make up the papal chapel and family.

Art. 181 - § 1. It is at the service of the Supreme Pontiff, both in the Apostolic Palace and when he travels in Rome or in Italy.

§ 2. Apart from the strictly liturgical aspect, which is handled by the Office for the Liturgical Celebrations of the Supreme Pontiff, the Prefecture sees to the planning and carrying out of papal ceremonies and determines the order of precedence.

§ 3. It arranges public and private audiences with the Pontiff, in consultation with the Secretariat of State whenever circumstances so demand and under its direction it arranges the procedures to be followed when the Roman Pontiff meets in a solemn audience with heads of State, ambassadors, members of governments, public authorities, and other distinguished persons.

Office for the Liturgical Celebrations of the Supreme Pontiff

Art. 182 - § 1. The Office for the Liturgical Celebrations of the Supreme Pontiff is to prepare all that is necessary for the liturgical and other sacred celebrations performed by the Supreme Pontiff or in his name and supervise them according to the current prescriptions of liturgical law.

§ 2. The master of papal liturgical celebrations is appointed by the Supreme Pontiff to a five-year term of office; papal masters of ceremonies who assist him in sacred celebrations are likewise appointed by the secretary of state to a term of the same length.

VIII ADVOCATES

Art. 183 - Apart from the advocates of the Roman Rota and the advocates for the causes of saints, there is a roster of advocates who, at the request of interested parties, are qualified to represent them in their cases at the Supreme Tribunal of the Apostolic Signatura and to offer assistance in hierarchical recourses lodged before dicasteries of the Roman Curia.

Art. 184 - Candidates can be inscribed in the roster by the cardinal secretary of state, after he has consulted a commission stably constituted for this purpose. Candidates must be qualified by a suitable preparation attested by appropriate academic degrees, and at the same time be recommended by their example of a Christian life, honourable character, and expertise. Should any of this cease to be the case at a later date, the advocate shall be struck from the roster.

Art. 185 - § 1. The body called "Advocates of the Holy See" is composed mainly of advocates listed in the roster of advocates, and its members are able to undertake the representation of cases in civil or ecclesiastical tribunals in the name of the Holy See or the dicasteries of the Roman Curia.

§ 2. They are appointed by the cardinal secretary of state to a five-year term of office on the recommendation of the commission mentioned in art. 184; for serious reasons, they may be removed from office. Once they have completed seventy-five years of age, they cease their office.

IX INSTITUTIONS CONNECTED WITH THE HOLY SEE

Art. 186 - There are certain institutes, some of ancient origin and some not long established, which do not belong to the Roman Curia in a strict sense but nevertheless provide useful or necessary services to the Supreme Pontiff himself, to the Curia and the whole Church, and are in some way connected with the Apostolic See.

Art. 187 - Among such institutes are the Vatican Secret Archives, where documents of the Church's governance are preserved first of all so that they may be available to the Holy See itself and to the Curia as they carry out their own work, but then also, by papal permission, so that they may be available to everyone engaged in historical research and serve as a source of information on all areas of secular history that have been closely connected with the life of the Church in centuries gone by.

Art. 188 - In the Vatican Apostolic Library, established by the Supreme Pontiffs, the Church has a remarkable instrument for fostering, guarding, and spreading culture. In its various sections, it offers to scholars researching truth a treasure of every kind of art and knowledge.

Art. 189 - To seek the truth and to spread it in the various areas of divine and human sciences there have arisen within the Roman Church various academies, as they are called, among which is the Pontifical Academy of Sciences.

Art. 190 - In their constitution and administration, all these institutions of the Roman Church are governed by their own laws.

Art. 191 - Of more recent origin, though partly based on examples of the past, are the Vatican Polyglot Press; the Vatican Publishing House and its bookstore; the daily, weekly and monthly newspapers, among which L'Osservatore

romano; Vatican Radio; the Vatican Television Centre. These institutes, according to their own regulations, come within the competence of the Secretariat of State or of other agencies of the Roman Curia.

Art. 192 - The Fabric of Saint Peter's deals, according to its own regulations, with matters concerning the Basilica of the Prince of the Apostles, with respect to the preservation and decoration of the building and behaviour among the employees and pilgrims who come into the church. Where necessary, the superiors of the Fabric act in cooperation with the Chapter of the Basilica.

Art. 193 - The Office of Papal Charities carries on the work of aid of the Supreme Pontiff toward the poor and is subject directly to him.

We decree the present Apostolic Constitution to be stable, valid, and effective now and henceforth, that it shall receive its full and integral effects from the first day of the month of March of 1989, and that it must in each and everything and in any manner whatsoever be fully observed by all those to whom it applies or in any way shall apply, anything to the contrary notwithstanding, even if it is worthy of most special mention.

Given in Rome, at Saint Peter's, in the presence of the cardinals assembled in consistory, on the vigil of the solemnity of the Holy Apostles Peter and Paul, 28 June in the Marian Year 1988, the tenth of Our pontificate.

JOHN PAUL II

APPENDIX I

Pastoral Significance of the Visit ad limina Apostolorum

(cf. arts. 28-32)

That pastoral spirit, prominent in the revision of the Apostolic Constitution on the Roman Curia, has also led to attaching greater significance to bishops' visits ad limina

Apostolorum, bringing a more adequate light to bear on the pastoral importance which the visits have gained in the present life of the Church.

1. These visits, as we know, take place when the bishops, joined as they are to the Apostolic See with the bond of communion and presiding in charity and service over the particular Churches throughout the world, set out at certain appointed times for Rome to visit the tombs of the Apostles.

On the one hand, these visits give the bishops an opportunity to sharpen their awareness of their responsibilities as successors of the Apostles and to feel more intensely their sense of hierarchical communion with the successor of Peter. On the other hand, the visits in some way constitute the highest and most central point in that universal ministry that the Holy Father is carrying out when he embraces his brother bishops, the pastors of the particular Churches, and takes up with them the business of sustaining their mission in the Church.

2. These ad limina visits bring into full view this movement or life-blood between the particular Churches and the Church as a whole that theologians call perichoresis . The process may be compared to the diastolic-systolic movements within the human body when the blood is carried to the outer limbs and from there flows back to the heart.

Some trace and example of a first ad limina visit is found in Paul's letter to the Galatians, in which the Apostle tells the story of his conversion and the journey he undertook among the pagans. Although he knew that he had been called and instructed personally by Christ who had conquered death, he wrote these words: "[Then] did I go up to Jerusalem to meet Cephas. I stayed fifteen days with him" (Gal 1:18). "It was not until fourteen years later that I travelled up to Jerusalem again [...] I expounded the whole gospel that I preach the gentiles, to make quite sure that the efforts I was making and had already made should not be fruitless" (Gal 2: 1-2).

3. The natural result of this meeting with Peter's successor, first guardian of the deposit of truth passed on by the Apostles, is to strengthen unity in the same faith, hope and charity, and more and more to recognize and treasure that immense heritage of spiritual and moral wealth that the whole Church, joined with the bishop of Rome by the bond of communion, has spread throughout the world.

During the ad limina visit, two men stand face to face together, namely the bishop of a certain particular Church and the bishop of Rome, who is also the successor of Peter. Both carry on their shoulders the burden of office, which they cannot relieve themselves from, but they are not at all divided one from the other, for both of them in their own way represent, and must represent, the sum total of the faithful, the whole of the Church, and the sum total of the bishops, which together constitute the only "we and us" in the body of Christ. It is in their communion that the faithful under their care communicate with one another, and likewise the universal Church and particular Churches communicate with each other.

4. For all these reasons, the ad limina visits express that pastoral solicitude which thrives in the universal Church. Here we see the meeting of the pastors of the Church, joined together in a collegial unity that is based on apostolic succession. In this College, each and every one of the bishops displays that solicitude of Jesus Christ, the Good Shepherd, which all have received by way of inheritance.

This indeed is the highest ideal of the apostolate that has to be carried out in the Church and which concerns the bishops together with the successor of Peter. For each one of them stands at the centre of all the apostolate, in all its forms, that is carried out in each particular Church, joined at the same time in the universal dimension of the Church as a whole. All this apostolate, again in all its forms, demands and includes the work and help of all those who are building the Body of Christ in the Church, be it universal or particular: the priests, men and women religious consecrated to God, and the laypeople.

5. Now if the ad limina visits are conceived and viewed in this way, they come to be a specific moment of that communion which so profoundly determines the nature and essence of the Church, as it was admirably indicated in the Dogmatic Constitution on the Church, especially in chapters II and III. Given that society nowadays is moving towards a greater unification, and the Church experiences herself as "a sign and instrument [...] of communion with God and of unity among the whole of humankind," it seems utterly necessary that a permanent communication between particular Churches and the Apostolic See should be promoted and built up, especially by sharing pastoral solicitude regarding questions, experiences, problems, projects and ideas about life and action.

When pastors converge on Rome and meet together, there comes to pass a remarkable and most beautiful sharing of gifts from among all those riches in the Church, be they universal or local and particular, in accordance with that principle of catholicity by which "each part contributes its own gifts to other parts and to the whole Church, so that the whole and each of the parts are strengthened by the common sharing of all things and by the common effort to attain to fullness in unity."

Furthermore and in the same way, ad limina visits aim not only at a direct sharing of information but also and especially to an increase and strengthening of a collegial structure in the body of the Church, bringing about a remarkable unity in variety.

This communication in the Church is a two-way movement. On the one hand, the bishops converge towards the centre and the visible foundation of unity. We are referring to that unity which, when it comes to full bloom, casts its benefits on their own groupings or conferences, through each pastor's responsibilities and awareness of his functions and of their fulfilment, or through the collegial spirit of all the pastors. On the other hand, there is the commission "which the Lord confided to Peter alone, as the first of the apostles" which serves the ecclesial community and the spread of her mission, in such a way that nothing is left untried that may lead to the advancement and preservation of the unity of the faith and the common discipline of the whole Church, and all become more and more aware that the responsibility of proclaiming the Gospel everywhere throughout the world falls chiefly on the body of the pastors.

6. From all the principles established above to describe this most important process, one may deduce in what way that apostolic custom of "seeing Peter" is to be understood and put into practice.

First of all the ad limina visit has a sacred meaning in that the bishops with religious veneration pay a visit to the tombs of Peter and Paul, the Princes of the Apostles, shepherds and pillars of the Church of Rome.

Then the ad limina visit has a personal meaning because each individual bishop meets the successor of Peter and talks to him face to face .

Finally, the visit has a curial meaning , that is, a hallmark of community , because the bishops enter into conversation with the moderators of the dicasteries, councils, and offices of the Roman Curia. The Curia, after all, is a certain "community" that is closely joined with the Roman Pontiff in that area of the Petrine ministry which involves solicitude for all the Churches (cf. 2 Cor 11:28).

In the course of the ad limina visit, the access that the bishops have to the dicasteries is of a two-fold nature:

- First, it gives them access to each individual agency of the Roman Curia, especially to questions that the agencies are dealing with directly according to their competence, questions that have been referred by law to those agencies because of their expertise and experience.

- Second, bishops coming from all over the world, where each of the particular Churches can be found, are introduced to questions of common pastoral solicitude for the universal Church.

Bearing in mind this specific point of view, the Congregation for Bishops, in consultation with the other interested Congregations, is preparing a "Directory" for publication so that the ad limina visits can receive long- and short-term preparation and thus proceed smoothly.

7. Each and every bishop - by the very nature of that "ministry" that has been entrusted to him - is called and invited to visit the "tombs of the Apostles" at certain appointed times.

However, since the bishops living within each territory, nation or region, have already gathered together and now form conferences of bishops - collegial unions with an excellent, broad theoretical basis - it is highly appropriate that the ad limina visits should proceed according to this collegial principle, for that carries much significance within the Church.

The institutes of the Apostolic See, and especially the nunciatures and apostolic delegations as well as the dicasteries of the Roman Curia, are most willing to offer assistance in order to ensure that ad limina visits be made possible, are suitably prepared and proceed well.

To sum up: the institution of the ad limina visit is an instrument of the utmost value, commanding respect because it is an ancient custom and has outstanding pastoral importance. Truly, these visits express the catholicity of the Church and the unity and communion of the College of Bishops, qualities rooted in the successor of Peter and signified by those holy places where the Princes of the Apostles underwent martyrdom, qualities of a theological, pastoral, social, and religious import known to all.

This institution therefore is to be favored and promoted in every possible way, especially at this moment of the history of salvation in which the teachings and magisterium of the Second Vatican Ecumenical Council shine out with ever brighter light.

APPENDIX II

The Collaborators of the Apostolic See as a Work Community

(cf. arts. 33-36)

1. The principal feature characterizing the revision of the Apostolic Constitution Regimini Ecclesiæ universæ, so that it might be adapted to the needs that arose after its promulgation, was certainly to emphasize the pastoral nature of the

Roman Curia. Viewed in this way, the true character of the functions fulfilled in the midst, as it were, of the Apostolic See shines bright and clear, so that they provide the Supreme Pontiff with suitable instruments to carry out the mission entrusted to him by Christ Our Lord.

Through that unique ministry which he offers to the Church, the Supreme Pontiff strengthens his brothers in the faith (Lk 22:32) - the pastors, namely, and the Christian faithful of the universal Church - looking only to nourish and guard that Church communion in which "there are also particular Churches that retain their own traditions, without prejudice to the Chair of Peter which presides over the whole assembly of charity (cf. S. Ignatius M., Ad Rom ., pref., Funk, I, p. 252), and protects their legitimate variety and at the same time keeps watch to ensure that individual differences, so far from being harmful to unity, actually serve its cause."

2. By constant toil, this Petrine ministry reaches out to the whole world and claims the help of persons and other means throughout the Church. Help it does receive in a direct and privileged manner from all those who are called to perform various functions in the Roman Curia and in the various institutions which compose the structure of the Holy See, be they in holy orders as bishops and priests, or men and women consecrated to God in the religious families and secular institutes, or Christian lay men and women.

Out of this diversity emerge certain quite remarkable contours and the considerable importance of these duties, which have absolutely no equivalent at any other level of civil society, with which by its very nature indeed the Roman Curia cannot be compared. On this foundation stands that leading idea of the work community constituted by all those who, being well nourished with the one and the same faith and charity and "united, heart and soul" (Acts 4:32), make up those structures of collaboration just mentioned. Therefore those who under whatever title and in any manner help in the universal mission of the Supreme Pontiff to foster the Church community, have a further call to set up a communion of purpose, of undertakings, and of rules of behaviour, that deserves the name of community more than does any other form of grouping.

3. The letter of Pope John Paul II of 20 November 1982 on the meaning of work performed for the Apostolic See, took pains to elaborate on the characteristics of this work community. The letter outlined its nature, unique and yet endowed with a variety of functions. All those who share in the "single, incessant activity of the Apostolic See," become in some way brothers. From this consideration the letter went on to conclude that those who shared in this work should be aware "of that specific character of their positions. In any case, such a consciousness has ever been the tradition and pride of those who have chosen to dedicate themselves to that noble service." The letter adds: "This consideration applies to clerics and religious and to laity as well; both to those who occupy posts of high responsibility and to office and manual workers to whom auxiliary functions are assigned."

The same letter points out the special nature of the Apostolic See, which, to preserve the exercise of spiritual freedom and its true and visible immunity, constitutes a sovereign State in its own right and yet "does not possess all ordinary characteristics of a political community," different from all others. The practical results of this condition are seen in the operation of its affairs, especially as regards its economic organization. In the Apostolic See there is a total absence of a taxation system that other states have by right, and it has no economic activity producing goods and income. The "prime basis of sustenance of the Apostolic See is the spontaneous offerings" by reason of a certain universal interdependence emanating from the Catholic family and elsewhere, which to a marvellous degree expresses that communion of charity over which the Apostolic See presides in the world and by which it lives.

From this basic condition flow certain consequences on the practical level and in the behaviour among the staff of the Holy See - "the spirit of thrift," "a readiness always to take account of the real but limited financial possibilities of the Holy See and their source," "a profound trust in Providence." And, over and beyond all these qualities, "those who work for the Holy See must therefore have the profound conviction that their work above all entails an ecclesial responsibility to live in a spirit of authentic faith, and that the juridical-administrative aspects of their relationship with the Apostolic See stand in a particular light."

4. The remuneration owed to the clerical and lay staff at the Holy See, according to their personal conditions of life, is regulated by the major principles of the social teachings of the Church, which have been made quite clear by the magisterium of the Popes from the time of the publication of Leo XIII's Encyclical Letter Rerum novarum up to John Paul

II's Encyclicals Laborem exercens and Sollicitudo rei socialis .

While labouring under a grave lack of economic means, the Holy See makes every effort to measure up to the heavy obligations to which it is held with regard to its workers - even granting them certain benefit packages - but subject to that basic situation which is peculiar to the Apostolic See and has been explained in the Pope's Letter, the fact, namely, that the Holy See cannot be compared to any other form of State, since it is deprived of the ordinary means of generating income, except the income that comes from universal charity. However the Holy See is conscious of the fact - and the same Apostolic Letter makes this clear - that the active cooperation of everybody, and especially of the lay members of the staff, is necessary so that regulations and interrelations may be protected, as well as those rights and duties that arise out of "social justice" when it is correctly applied to the relations between worker and employer. On this subject, the Apostolic Letter has pointed out the help that workers associations can give in this respect, like the "Associazione Dipendenti Laici Vaticani," recently founded through productive talks among the various administrative levels to promote the spirit of solicitude and justice. The Apostolic Letter however has cautioned us to beware lest this kind of group distort the leading ideal that must govern the work community of the See of Peter. The letter says: "However, a lapse of this type of organization into the field of extremist conflict and class struggle does not correspond to the Church's social teaching. Nor should such associations have a political character or openly or covertly serve partisan interests or other interests with quite different goals."

5. At the same time the Supreme Pontiff declared his firm conviction that associations of this kind - like the one mentioned above - "set forward work problems and develop continuous and constructive dialogue with the competent organisms [and] will not fail to take account in every case of the particular character of the Apostolic See."

Now since the lay staff of Vatican City had very much at heart that there be an ever more suitable fine-tuning of working conditions and of everything touching the labour question, the Supreme Pontiff provided that "suitable executive documents" be prepared "for forthering a work community according to the principles set forth by means of suitable norms and structures."

The outcome of the Pope's concern is now "The Labour Office of the Apostolic See" (L.A.A.S.), which is established by an Apostolic Letter given motu proprio together with the document specifying in detail the membership of the Labour Office, its authority, its functions, its regulatory and advisory organs as well as its proper norms to facilitate a fair, rapid, and efficient process; furthermore, as it has been just newly set up, this Office needs a reasonable period of time to operate ad experimentum so that its regulations and procedures may be confirmed and its true and objective importance reviewed. This motu proprio and the regulations of the new Labour Office are being published at the same time, together with the promulgation of the Apostolic Constitution on the renewal of the Roman Curia.

6. The chief purpose of the Labour Office - apart from the practical ends for which it was brought into existence - is to promote and preserve a work community among the various levels of staff of the Apostolic See, especially the laypeople. The spirit of this community should be characteristic of all who have been called to the privilege and responsibility of serving the Petrine ministry.

Again and again it is to be explained that these workers are in duty bound to foster and cultivate within themselves a special awareness of the Church, an awareness making them ever more fitted to fulfill the functions entrusted to them, no matter what these may be. These functions are not mere give and take arrangements - a certain labour given and a certain wage received -, as may happen in institutions in civil society; they constitute rather a service offered to Christ himself "who came not to be served but to serve" (Mt 20:28).

Therefore all the workers of the Holy See, clergy and laity, out of a sense of honour and sincerely conscious of their own duty before God and themselves, must resolve that their lives as priests and lay faithful shall be lived at an exemplary level, as is proposed by God's commandments, by the laws of the Church and by the pronouncements of the Second Vatican Council, especially in Lumen gentium , Presbyterorum ordinis , and Apostolicam actuositatem . However, this is a free decision, by which with full awareness certain responsibilities are taken on, the force of which is felt not only on the individuals but also on their families and even on the actual work community composed of all the collaborators of the Holy See.

Well may we be asked "of whose spirit we are" (cf. Lk 9:55 Vulg.): thus the Pope writes at the end of the Apostolic Letter. So each and all, in searching their own sincerity as human beings and as Christians, are bound to be faithful to those promises, and to keep those bonds that they freely accepted when they were chosen to labour at the Holy See.

7. To keep in view the principles and norms indicated by the Pope in the afore-mentioned Apostolic Letter to the cardinal secretary of state, the full text is printed below. In fact, this document must be considered as the foundation and sign of the whole pattern of interdependence in order to maintain full cooperation and understanding within the work community at the service of the Apostolic See.

Apostolic Letter Apostolica Sedes by John Paul II on the meaning of work performed for the Apostolic See

1. The Apostolic See, in exercising its mission, has recourse to the valid and precious work of the particular community made up of those men and women, priests, religious and laity who devote their efforts in their dicasteries and offices to the service of the universal Church.

Charges and duties are assigned to the members of this community; each of those charges and duties has its own purpose and dignity, in consideration both of the objective content and value of the work done and of the person who accomplishes it.

This concept of community, applied to those who aid the bishop of Rome in his ministry as pastor of the universal Church, permits us first of all to define the unitary character of functions which are nonetheless diverse among themselves. All persons called to perform them really participate in the single, incessant activity of the Apostolic See; that is, in that "concern for all the Churches" (cf. 2 Cor . 11:28) which enlivened the apostles' service from the earliest times and is the prerogative today in outstanding measure of the successors of St. Peter in the Roman See. It is very important that those who are associated in any way with the Apostolic See's activity should have a consciousness of that specific character of their positions. In any case, such a consciousness has ever been the tradition and pride of those who have chosen to dedicate themselves to that noble service.

This consideration applies to clerics and religious and to laity as well, both to those who hold posts of high responsibility, and to office and manual workers to whom auxiliary functions are assigned. It applies to persons attached to the service of the same Apostolic See more directly, inasmuch as they work in those organisms which are altogether known in fact under the name of "Holy See;" and it applies to those who are in the service of the Vatican City State, which is so closely linked with the Apostolic See.

In the recent Encyclical Laborem exercens, I recalled the principal truths of the "gospel of labour" and Catholic doctrine on human work, a doctrine always alive in the Church's tradition. There is need for the life of that singular community which operates sub umbra Petri - in Peter's shadow -, in such immediate contact with the Apostolic See, to conform itself to these truths.

2. In order to apply these principles to reality, their objective significance must be borne in mind, together with the specific nature of the Apostolic See. This latter does not have the general form of true states even though, as I noted above, the entity described as the Vatican City State is closely linked with it; for true states are subjects of the political sovereignty of particular societies. On the other hand, the Vatican City State is sovereign, yet does not possess all ordinary characteristics of a political community. It is an atypical state. It exists as a fitting means of guaranteeing the exercise of the spiritual liberty of the Apostolic See; that is, as the means of assuring real and visible independence of the same in its activity of government for the sake of the universal Church, as well as of its pastoral work directed toward the whole human race. It does not possess a proper society for the service of which it was established nor does it base itself upon forms of social action which usually determine the structure and organization of every other state. Furthermore, the persons who aid the Apostolic See or even cooperate in government of the Vatican City State are with few exceptions not citizens of this state. Nor, consequently, do they have the rights and duties (those to do with taxation in particular) which ordinarily arise from belonging to a state.

The Apostolic See does not develop nor can it develop economic activity proper to a state, since it transcends the narrow confines of the Vatican City State in a much more important respect and extends its mission to the whole of the

earth. Production of economic goods and enrichment by way of revenues are foreign to its institutional purposes. Besides the revenues of the Vatican City State and the limited income afforded by what remains of the funds obtained on the occasion of the Lateran Pacts as indemnity for the Papal States. and ecclesiastical goods passed to the Italian State, the prime basis of sustenance of the Apostolic See is the spontaneous offerings provided by Catholics throughout the world and by other men of good will. This corresponds to a tradition having its origin in the Gospel and the teachings of the apostles. This tradition has taken on various forms over the centuries in relation to the economic structures prevailing in various eras. In conformity with that tradition it must be affirmed that the Apostolic See may and ought to make use of the spontaneous contributions of the faithful and other people of good will, without having recourse to other means which might appear to be less respectful of the character proper to the Apostolic See.

3.The above-mentioned material contributions are the expression of a constant and moving solidarity with the Apostolic See and the activity carried out by it. My profound gratitude goes out to such great solidarity. It ought to be with a sense of responsibility commensurate with the nature of the contributions on the part of the Apostolic See itself, its individual organs and the persons working in them. That is to say that the contributions are to be used solely and always according to the dispositions and will of those offering them: for the general intention which is maintenance of the Apostolic See and the generality of its activities or for particular purposes (missionary, charitable, etc.), when these have been expressly mentioned.

Responsibility and loyalty toward those who show their solidarity with the Apostolic See through their aid and share its pastoral concern in some way are expressed in scrupulous fidelity to all tasks and duties assigned, as well as in the zeal, hard work and professional spirit which ought to distinguish whoever participates in the same Apostolic See's activities. Right intention must likewise be always cultivated, so as to exert watchful administration - in terms of their purposes - over both material goods which are offered and over what is acquired or conserved by means of such goods. This includes safeguarding and enhancing the See of Peter's precious inheritance in the religious-cultural and artistic fields.

In making use of means allocated for these ends, the Apostolic See and those directly collaborating with it must be distinguished not only by a spirit of thrift, but also by readiness always to take account of the real but limited financial possibilities of the Holy See and their source. Obviously such interior dispositions of mind ought to be well assimilated, becoming ingrained in the minds of religious and clerics through their training. But neither should they be lacking from the minds of laity who through their free choice accept working for and with the Apostolic See.

Moreover, all those who have particular responsibilities in running organisms, offices and services of the Apostolic See, as well as those employed in various functions, will know how to join this spirit of thrift with constant application to making the various activities ever more effective. This can be done through organization of work based, on the one hand, on full respect for persons and the valid contribution made by each according to his proper abilities and functions and, on the other hand, upon use of appropriate structures and technical means, so that the activity engaged in corresponds more and more to the demands of service to the universal Church. Recourse shall be had to everything that experience, science and technology teach; efforts will be made in this way to use human and financial resources with greater effectiveness by avoiding waste, self-interest and pursuit of unjustified privileges, and at the same time by promoting good human relations in every sector and the true and rightful interests of the Apostolic See.

Along with such commitment should go a profound trust in Providence, which, through the offerings of good people, will not allow a lack of the means to pursue the Apostolic See's proper ends. Should a lack of means impede accomplishment of some fundamental objective, a special appeal may be made to the generosity of the people of God, informing them of needs which are not sufficiently well known. In the normal way, however, it is fitting to be content with what bishops, priests, religious institutes and faithful offer spontaneously, since they themselves can see or discern rightful needs.

4. Many of those working with the Apostolic See are clerics. Since they live in celibacy, they have no families to their charge. They deserve remuneration proportional to the tasks performed and capable of assuring them a decent manner of living and means to carry out the duties of their state, including responsibilities which they may have in certain cases toward parents or other family members dependent on them. Nor should the demands of orderly social relationships be neglected, particularly and above all their obligation to assist the needy. This obligation is more impelling for clerics and

religious than for the laity, by reason of their evangelical vocation.

Remuneration of the lay employees of the Apostolic See should also correspond to the tasks performed, taking into consideration at the same time their responsibility to support their families. Study should therefore be devoted, in a spirit of lively concern and justice, to ascertaining their objective material needs and those of their families, including needs regarding education of their children and suitable provision for old age, so as to meet those needs properly. The fundamental guidelines in this sector are to be found in Catholic teaching on remuneration for work. Immediate indications for the evaluation of circumstances can be obtained from examining experiences and programs of the society - in particular, the Italian society - to which almost all lay employees of the Apostolic See belong and in which they at any rate live.

A valid collaborative function may be performed by workers' associations such as the Association of Vatican Lay Employees, which recently came into existence, in promoting that spirit of concern and justice, through representing those working within the Apostolic See. Such associations take on a specific character within the Apostolic See. They are an initiative in conformity with the Church's social teaching, for the Church sees them as one instrument for better assuring social justice in relations between worker and employer. However, a lapse of this type of organization into the field of extremist conflict and class struggle does not correspond to the Church's social teaching. Nor should such associations have a political or openly or covertly serve partisan interests or other interests with quite different goals.

I express confidence that associations such as that now existing and just mentioned will perform a useful function in the work community, operating in solid harmony with the Apostolic See, by taking inspiration from the principles of the Church's social teaching. I am likewise certain that as they set forward work problems and develop continuous and constructive dialogue with the competent organisms they will not fail to take account in every case of the particular character of the Apostolic See, as pointed out in the initial part of this letter.

In relation to what has been expounded, Your Eminence will wish to prepare suitable executive documents for furthering a work community according to the principles set forth by means of suitable norms and structures.

5. I emphasized in the Encyclical Laborem

exercens that the worker's personal dignity requires expression in a particular relationship with the work entrusted to him. This relationship is objectively realizable in various ways according to the kind of work undertaken. It is realized subjectively when the worker lives it as "his own," even though he is working "for wages." Since the work in question here is performed within the Apostolic See and is therefore marked by the characteristics already mentioned, such a relationship calls for heartfelt sharing in that "concern for all the Churches" which is proper to the Chair of Peter.

Those who work for the Holy See must therefore have the profound conviction that their work above all entails an ecclesial responsibility to live in a spirit of authentic faith, and that the juridical-administrative aspects of their relationship with the Apostolic See stand in a particular light.

The Second Vatican Council provided us with copious teaching on the way in which all Christians, clerics, religious and laity can and ought to make such ecclesial concern their own.

So it seems necessary for all, especially those working with the Apostolic See, to deepen personal consciousness above all of the universal apostolic commitment of Christians and that arising from each one's specific vocation: that of the bishop, of the priest, of religious, of the laity. The answers to the present difficulties in the field of human labor are to be sought in the sphere of social justice. But they must also be sought in the area of an interior relationship with the work that each is called upon to perform. It seems evident that work - of whatever kind - carried out in the employment of the Apostolic See requires this in a quite special measure.

Besides the deepened interior relationship, this work calls for reciprocal respect, if it is to be advantageous and serene, based on human and Christian brotherhood by all and for all concerned. Only when it is allied with such brotherhood (that is, with love of man in truth), can justice manifest itself as true justice. We must try to find "of what spirit we are" (cf. Lk . 9:55, Vulg.).

These latter questions have hardly been touched on here. They cannot be adequately formulated in administrative-juridical terms. This does not exempt us, however, from the search and effort necessary for making operative precisely within the circle of the Apostolic See that spirit of human work which comes from our Lord Jesus Christ.

As I entrust these thoughts, Most Reverend Cardinal, to your attentive consideration, I call down an abundance of the gifts of divine assistance upon the future commitment which putting them into practice requires. At the same time I impart my benediction to you from my heart and willingly extend it to all those who offer their meritorious service to the Apostolic See.

JOHN PAUL II

TRANSLATION NOTE

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The translation was first completed in 1993. In 1997, it was revised by Michel Thériault; subsequently, it went under a new revision by the Canadian Conference of Catholic Bishops and the Secretariat of State. After a final revision by Michel Thériault, the translation was considered to be faithful to the letter and spirit of the original text and its publication was authorized by the Secretariat of State.